

FOR NEW LICENSES AND TRANSFER
LICENSE AND/OR PERMIT APPLICATION
 FOR LIQUOR, COUNTY MALT BEVERAGE, LIMITED, WINERY OR MICROBREWERY

To be completed by the City, Town or County Clerk:

Date Filed: 12/18/14 2100622

Basic Fee:	Annual Fee	Prorated Fee
Add'l Dispensing Room Fee:	\$ <u>10,500.00</u>	\$
Transfer Fee:	\$	\$
Total License Fee Collected:	\$ <u>10,500.00</u>	\$
Publishing Fee Collect:	\$ <u>100.00</u>	

Required Attachments Received: Yes ☒

Advertising Dates(4): Jan. 23, 30, 2015

Hearing Date: Jan. 26, 2015

Local Licensing Number: 8

For the license term: Apr 1 1 2015
 Month Day Year

Through: March 31 2016
 Month Day Year

A copy must be immediately forwarded to:
 State of Wyoming Liquor Division
 1520 E 5th Street
 Cheyenne WY 82002-0110

Formerly Held by: _____

Applicant: Wasabi Japanese Steakhouse Inc.

Trade Name (dba): Wasabi Japanese Grill & Bar

Premise Address: 4620 Grandview Ave #205
 Number & Street
Cheyenne WY 82009 Laramie
 City State Zip County

Mailing Address: 4620 Grandview Ave #205
 Number & Street or P.O. Box
Cheyenne WY 82009
 City State Zip

Business Telephone Number: (406) 439-4459

Fax Number: Mingyang Zhu

E-Mail Address: Wasabi.WY@icloud.com

LICENSING AUTHORITY: Begin publishing promptly. As W.S. 12-4-104(d) specifies: **NO LICENSING AUTHORITY SHALL APPROVE OR DENY THE APPLICATION UNTIL THE LIQUOR DIVISION HAS CERTIFIED THE APPLICATION IS COMPLETE.**

FILING FOR ☒ NEW ☐ TRANSFER LOCATION ☐ TRANSFER OWNERSHIP FILING IN (CHOOSE ONLY ONE) ☒ CITY OF <u>Cheyenne</u> ☐ COUNTY OF _____ FILING AS (CHOOSE ONLY ONE) ☐ INDIVIDUAL ☐ LLC ☐ PARTNERSHIP ☐ LLP ☒ CORPORATION ☐ LTD PARTNERSHIP ☐ ASSOCIATION ☐ ORGANIZATION	TYPE OF LICENSE OR PERMIT (CHOOSE ONLY ONE) ☐ RETAIL LIQUOR LICENSE ☐ on-premise only ☐ off-premise only ☐ combination on/off premise ☐ RESTAURANT LIQUOR LICENSE ☐ RESORT LIQUOR LICENSE ☐ COUNTY RETAIL or SPECIAL MALT ☐ BEVERAGE PERMIT ☐ VETERANS CLUB ☐ FRATERNAL CLUB ☐ GOLF CLUB ☐ SOCIAL CLUB ☐ MICROBREWERY ☒ WINERY ☒ BAR AND GRILL ☐ LOCATED WITHIN 5 MILES OF CITY (County License only)	To Assist the Liquor Division with scheduling inspections: DO YOU OPERATE? ☐ FULL TIME (e.g. Jan through Dec) ☐ SEASONAL/PART-TIME (specify months of operation) from <u>Jan</u> to <u>Dec</u> DAYS OF WEEK (e.g. Mon through Sat) <u>Sun - Sat</u> HOURS OF OPERATION (e.g. 10a - 2a) <u>Mon - Sat 4:00pm - 12:30am</u> <u>Sun 12:00pm - 9:00</u>
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1. Location of License:

(a) Give a description of the dispensing room and state where it is located in the building (e.g. 10x12 room in SE corner of 1st floor of building). If the building is not in existence, provide the location and an architect's drawing or suitable plans of the room and premises to be licensed: If **Winery** or **Microbrewery**, also list manufacturing facility. W.S. 12-4-102(a)(i): (Please submit a drawing of dispensing room)

30' x 16' Room Center of the Dining Area

(b) Do you have an additional dispensing room? ☐ YES ☒ NO If yes, provide description and location:

(c) Provide the legal description and the zoning of the site where the applicant will conduct business:

Lot 12 Block 3 Grandview 9st 2nd

CB

2. Do you W.S. 12-4-103 (a) (iii):

(1) **OWN** the building in which sales room is located?

☐ YES (own)

(2) **LEASE** the building in which sales room is located?

☒ YES (lease)

(A) **DATE** lease expires March 31/2020 located on page 5 paragraph 1.1 of lease document.

(B) Provision for **SALE** of alcoholic or malt beverages located on page 39 paragraph 1 of lease. Exh

NOTE: Attach a true copy of the lease to application. Lease **MUST** contain provision for **SALE OF ALCOHOLIC or MALT BEVERAGES** and be valid **THROUGH** the **TERM OF THE LICENSE** W.S. 12-4-103(a)(iii).

3. Have you already assigned, leased, transferred or do you intend to assign, lease, transfer, contract or in any other manner agree with any person or firm other than yourself as licensee to operate and assert control or partial control of the license and the licensed room to carry on the licensed liquor business? ☐ YES ☒ NO

4. Does any manufacturer, brewer, rectifier, wholesaler, or through a subsidiary affiliate, officer, director or member of any such firm: W.S. 12-5-401, 12-5-402, 12-5-403
- (a) Hold any interest in the license applied for? ☐ YES ☒ NO
- (b) Furnish by way of loan or any other money or financial assistance for purposes hereof in your business? ☐ YES ☒ NO
- (c) Furnish, give, rent or loan any equipment, fixtures, interior decorations or signs other than standard brewery or manufacturer's signs? ☐ YES ☒ NO
- (d) If you answered YES to any of the above, explain fully and submit any documents in connection therewith: _____

5. Does applicant have any interest or intent to acquire an interest in any other retail liquor license to be issued by this licensing authority? W.S. 12-4-103(b) ☐ YES ☒ NO
If "YES", explain: _____
6. Is applicant a mayor, member of a city or town council, or member of the board of county commissioners within the jurisdiction of this licensing authority? W.S. 12-4-103(a)(i) ☐ YES ☒ NO
7. Is applicant employed by the State, City or Town, or County as a law enforcement officer, or hold office as a law enforcement officer through election? W.S. 12-4-103(a)(ii) ☐ YES ☒ NO

RESTAURANT OR BAR AND GRILL LICENSE: Complete questions 8(a) and 8(b):

8. (a) Have you submitted a valid food service permit upon application? ☒ YES ☐ NO
W.S. 12-4-407(a) W.S. 12-4-413(a)
- (b) Was your dispensing room for alcoholic and/or malt beverages in existence and open for consumption purposes prior to February 1, 1979? W.S. 12-4-410(b) ☐ YES ☒ NO ☐ N/A

RESORT LICENSE: Complete questions 9(a) through 9(c):

9. (a) Is the actual valuation of the resort complex at least one million dollars, or have you committed or expended at least one million dollars (\$1,000,000.00) on the complex, excluding the value of the land? W.S. 12-4-401(b)(i) ☐ YES ☐ NO
- (b) Does the resort complex include a restaurant and a convention facility which will seat at least one hundred (100) persons? W.S. 12-4-401(b)(ii) ☐ YES ☐ NO
- (c) Does the resort complex include motel or hotel accommodations with at least one hundred (100) sleeping rooms? W.S. 12-4-401(b)(iii) ☐ YES ☐ NO

MICROBREWERY AND/OR WINERY LICENSE: Complete questions 10 through 11:

10. Is premise to be co-existent with a retail, restaurant, resort or bar and grill liquor license? W.S. 12-4-412(b)(iii) ☐ YES ☐ NO
- If "YES", please specify type: ☐ Microbrewery ☐ Winery ☐ Retail
☐ Restaurant ☐ Resort ☐ Bar & Grill:
11. (a) Do you self distribute your products? ☐ YES ☐ NO
- (b) Do you distribute your products through an existing malt beverage wholesaler? ☐ YES ☐ NO

ORGANIZATION AND/OR CLUB LICENSE: Complete questions 12 through 15 as applicable:

12. **FRATERNAL CLUBS** W.S. 12-1-101(a)(iii)(B)
- (a) The name and address of the grand lodge or national organization is: _____
- (b) Does lodge or fraternal organization hold a charter from a national organization or national grand lodge? ☐ YES ☐ NO
- (c) Has the fraternal organization been actively operating in at least thirty-six (36) states? ☐ YES ☐ NO
- (d) Has the fraternal organization been actively in existence for at least twenty (20) years? ☐ YES ☐ NO

13. **VETERANS CLUBS** W.S. 12-1-101(a)(iii)(A):

- (a) The name and address of the National Veterans organization is: _____
- (b) Has the Veteran's organization been chartered by the Congress of the United States for patriotic, fraternal or benevolent purposes? ☐ YES ☐ NO
- (c) Is the membership of the Veteran's organization comprised only of Veterans and its duly organized auxiliary? ☐ YES ☐ NO

14. SOCIAL CLUBS W.S. 12-1-101(a)(iii)(E):

- (a) Do you have more than one hundred (100) bona fide members who are residents of the county in which the club is located? ☐ YES ☐ NC
- (b) Is the club incorporated and operating solely as a nonprofit organization under the laws of the state? ☐ YES ☐ NC
- (c) Is the club qualified as a tax exempt organization under the Internal Revenue Service? ☐ YES ☐ NO
- (d) Has the club been in continuous operation for a period of not less than one (1) year? ☐ YES ☐ NO
- (e) Has the club received twenty-five dollars (\$25.00) from each bona fide member as recorded by the secretary of the club and are club members at the time of this application in good standing by having paid at least one (1) full year in dues? ☐ YES ☐ NO
- (f) Does the club hold quarterly meetings and have an actively engaged membership carrying out the objectives of the club? ☐ YES ☐ NO
- (g) Have you filed a true copy of your bylaws with the local licensing authority and the Wyoming Liquor Division? ☐ YES ☐ NO
- (h) Has at least fifty one percent (51%) of the membership signed a petition indicating a desire to secure a Limited Retail Liquor License?
(THE PETITION MUST BE ATTACHED TO APPLICATION) ☐ YES ☐ NO
- (i) Have you filed with the licensing authority and the Wyoming Liquor Division a detailed statement of your activities during the preceding year which were undertaken or furthered in pursuit of the objectives of the club, along with an itemized statement expended for such activities? ☐ YES ☐ NO

15. GOLF CLUBS W.S. 12-1-101(a)(iii)(D):

- (a) Do you have more than fifty (50) bona fide members? ☐ YES ☐ NO
- (b) Do you own, maintain, or operate a bona fide golf course together with clubhouse? ☐ YES ☐ NO

- 16. (a) If applicant is an Individual or Partnership:** State the name, date of birth and residence of each applicant or partner, if the application is made by more than one individual or by a partnership.
- If the application is for a Club:** State the name, date of birth and residence of each officer.

True and Correct Name	Date of Birth	DONOT LIST PO BOXES Residence Address No. & Street City, State & Zip	Residence Phone Number	Have you been a DOMICILED resident for at least 1 year and not claimed residence in any other state in the last year?	Have you been Convicted of a Felony Violation?	Have you been Convicted of a Violation Relating to Alcoholic Liquor or Malt Beverages?
				YES ☐ NO ☐	YES ☐ NO ☐	YES ☐ NO ☐
				YES ☐ NO ☐	YES ☐ NO ☐	YES ☐ NO ☐
				YES ☐ NO ☐	YES ☐ NO ☐	YES ☐ NO ☐
				YES ☐ NO ☐	YES ☐ NO ☐	YES ☐ NO ☐
				YES ☐ NO ☐	YES ☐ NO ☐	YES ☐ NO ☐
				YES ☐ NO ☐	YES ☐ NO ☐	YES ☐ NO ☐
				YES ☐ NO ☐	YES ☐ NO ☐	YES ☐ NO ☐
				YES ☐ NO ☐	YES ☐ NO ☐	YES ☐ NO ☐

(If more information is required, list on a separate piece of paper and attach to this application.)

- (b) If the applicant is a Corporation, Limited Liability Company, Limited Liability Partnership or Limited Partnership:** State the name, date of birth and residence of each stockholder holding, either jointly or severally, ten percent (10%) or more of the outstanding and issued capital stock of the corporation, limited liability company, limited liability partnership, or limited partnership, and every officer, and every director.

True and Correct Name	Date of Birth	DONOT LIST PO BOXES Residence Address No. & Street City, State & Zip	Residence Phone Number	No. of Years in Corp or LLC	% of Stock Held	Have you been Convicted of a Felony Violation?	Have you been Convicted of a Violation Relating to Alcoholic Liquor or Malt Beverages?
						YES ☐ NO ☐	YES ☐ NO ☐
Mingyang Zhu	01/13/1985	3529 Ridge Rd Cheyenne WY 82001	406-439-4448	2014	100%	YES ☐ NO ☒	YES ☒ NO ☐
						YES ☐ NO ☐	YES ☐ NO ☐
						YES ☐ NO ☐	YES ☐ NO ☐
						YES ☐ NO ☐	YES ☐ NO ☐
						YES ☐ NO ☐	YES ☐ NO ☐
						YES ☐ NO ☐	YES ☐ NO ☐
						YES ☐ NO ☐	YES ☐ NO ☐

(If more information is required, list on a separate piece of paper and attach to this application.)

OATH OR VERIFICATION

(Requires signatures by **ALL** Individuals, **ALL** Partners, **ONE** (1) LLC Member, or **TWO** (2) Corporate Office or Directors except that if all the stock of the corporation is owned by **ONE** (1) individual then that individual may sign and verify the application upon his oath, or **TWO** (2) Club Officers.) W.S. 12-4-102(b)

Under penalty of perjury, and the possible revocation or cancellation of the license, I swear the above stated facts are true and accurate.

STATE OF WYOMING)

SS.

COUNTY OF Laramie

Before Me, Wendy J Kinkade, (specify)
(Printed name of Notary or other officer authorized to administer oaths)

a Notary Public, Officer authorized to administer oaths in and for
Laramie County, State of Wyoming, personally appeared

Mingyang Zhu name he/she being first duly sworn
(Insert Names)

by me upon his oath, says that the facts alleged in the foregoing instrument are true.

(Seal)



1. [Signature]
2. _____
3. _____
4. _____

My Commission expires: 3-27-2016

Witness my hand and official seal:

Wendy J Kinkade
(Notary Public or other officer authorized to administer oaths)

Title Notary

Dated: Dec 18th 2014

REQUIRED ATTACHMENTS:

- (a) Attach any lease agreements W.S. 12-4-103 (a) (iii).
- (b) If the building is not in existence, an architect's drawing or suitable plans of the room and the premises to be licensed must be attached W.S. 12-4-102 (a) (i).
- (c) A statement indicating the financial condition and financial stability of the applicant W.S. 12-4-102 (a) (v).
- (d) Restaurant or Bar & Grill Liquor License applicants must include a copy of the CURRENT food service permit W.S. 12-4-407 (a) or 12-4-413 (a).
- (e) Include a drawing of the dispensing room W.S. 12-5-201 (a).
- (f) Check or bank draft as payment for the application and publishing the notice of application (Direct billing is permissible for publication fees) W.S. 12-4-101-4 (a).
- (g) If transferring a license from one ownership to another, a form of assignment from the current licensee to the new applicant authorizing the transfer W.S. 12-4-601 (b).

ADVERTISING REQUIREMENTS W.S. 12-4-104(a):

When an application for a license, permit, renewal or any transfer of location or ownership thereof has been filed with a licensing authority, the clerk shall promptly prepare a notice of application, place the notice conspicuously upon the premises shown by the application as the proposed place of sale and public the notice in a newspaper of local circulation once a week for four (4) consecutive weeks. The notice shall state that a named applicant has applied for a license, permit, renewal or transfer thereof, and that protests against the issuance, renewal, or transfer of the license or permit will be heard at a designated meeting of the licensing authority.

FOR LIQUOR DIVISION USE ONLY		
Reviewer	Initials	Date
Agent:		
Chief:		
Acct.:		

Dear the mayor and city Councillors

Thank you for sparing a time to read my letter. My name is Mingyang Zhu. I've been living in Wyoming for almost a year since I moved from Montana.

Cheyenne has a booming economy and a large population in Wyoming. The lack of good and large Japanese restaurants therefor I'm operating a Japanese restaurant in Bozeman, MT which is very popular by the local residents. In the view of the reason, I think it will be successful in Cheyenne, too. So I hope I could get supports from the Lord Mayor and city Councillors for the Liquor License application this time. Best wishes!

Sincerely.

Mingyang Zhu

STATE OF WYOMING
Office of the Secretary of State

I, MAX MAXFIELD, SECRETARY OF STATE of the STATE OF WYOMING, do hereby certify that the filing requirements for the issuance of this certificate have been fulfilled.

CERTIFICATE OF INCORPORATION

WASABI JAPANESE STEAK HOUSE INC

Accordingly, the undersigned, by virtue of the authority vested in me by the law, hereby issues this Certificate.

I have affixed hereto the Great Seal of the State of Wyoming and duly executed this official certificate at Cheyenne, Wyoming on this 17th day of June, 2014.



Filed Date: 06/17/2014


Secretary of State

By: Dave Barker

Financial Statement for Liquor License Applicants

Applicant: Wasabi Japanese Steakhouse

Date: 12 / 13 / 2014

Assets

Current Assets

Cash

\$ 150000.00

Investments

\$ 160000.00

Inventory

\$ NA

Prepaid Expenses

\$ 320000.00

Other Current Assets

\$ NA

TOTAL CURRENT ASSETS

\$ 610000.00

Fixed Assets

Land

\$ NA

Buildings

\$ NA

Leasehold Improvements

\$ NA

Furniture & Fixtures

\$ 30000.00

Other Fixed Assets

\$ NA

TOTAL FIXED ASSETS

\$ NA

Less- Accumulated Depreciation

\$ NA

NET FIXED ASSETS

\$ NA

TOTAL ASSETS (LINE 1)

\$ 30000.00

Liabilities

Current Liabilities

Accounts Payable

\$ ~~22000.00~~ 4000.00

Note Payable

\$ NA

Accrued Expenses (Interest, taxes, wages, etc.)

\$ NA

Installment Loans Payable

\$ NA

Other Current Liabilities

\$ NA

TOTAL CURRENT LIABILITIES (Line 2)

\$ 4000.00

Capital

Capital

Sole Proprietor

\$ NA

Corporation

Capital Stock

\$ NA

Treasury Stock

\$ NA

Retained Earnings

\$ NA

Partnership

Name of Partner

Capital

\$

\$

\$

\$

TOTAL CAPITAL (LINE 3)

\$ 0.00

TOTAL LIABILITIES & CAPITAL

(Line 2 = Line 3) Must equal line 1

\$ 636000.00

Make Checks Payable to: WYOMING DEPARTMENT OF AGRICULTURE CONSUM. CLCHD / Env. Health 100 Central Ave. Cheyenne, WY. 82007 CHEYENNE, WY. 82002 (307) 777-7211 State Relay Service at 7-1-1 or 1 800 877-9965	Instructions: Submit this application to the inspector of the WY Dept of Agriculture or local County Health Dept. Complete all sections. If a section is not applicable enter "N/A". If additional space is needed for any item, attach additional sheet. EQUAL OPPORTUNITY IN EMPLOYMENT AND SERVICES
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APPLICATION FOR FOOD LICENSE
FOOD LICENSE: \$100.00 Initial Fee; \$50.00 Annual Renewal Fee.
(Licenses shall expire one year after date of issuance)

Cheyenne Office Use Only		
LICENSE ACCOUNT NUMBER _____	ACTIVATION DATE _____	CHECK NO./CASH CK/023 \$100.00

LICENSE APPLICATION INFORMATION (to be completed by applicant)

Type of Application: ☒ New ☐ Change of Location ☐ Change of Owner	If change of owner, previous establishment name: _____
Form of Organization ☐ Individual ☐ Association ☒ Corporation ☐ Partnership ☐ Other Legal Entity (specify) _____	If Corporation/ Business Entity Required to be Registered, Name of State where Incorporated/Registered <u>Wyoming</u> Date Incorporated/Registered (month and year) <u>07/2014</u>

- Establishment Information -	
Establishment Name: <u>Wasabi Grill and sushi Lounge</u> Address: <u>4620 Grandview Ave #205-207</u> City: <u>Cheyenne</u> State: <u>WY</u> Zip: <u>82009</u> Area Code and Phone Number: <u>406-439-4459</u>	PAID CK # 1023 \$100.00 1/7/15

- Owner Information -	
Name of Owner: <u>Mingyang Zhu</u> Last First and middle initial	<u>Mingyang</u>
Address: <u>3529 Ridge Rd</u> City: <u>Cheyenne</u> State: <u>WY</u> Zip: <u>82001</u> Area Code and Phone Number: <u>406-439-4459</u>	
MAILING INDICATOR - INDICATE WHERE TO MAIL LICENSE <u>2</u> (1 = ESTABLISHMENT; 2 = OWNER)	

Type of Establishment (please check applicable box) ☐ Restaurant/Food Service ☐ Retail Grocery/Convenience Store ☐ Meat (Slaughter, Processor) ☐ Distributor ☐ Warehouse ☐ Dairy ☐ Bulk Water Hauler ☐ Bar ☐ Mobile ☐ Commissary Dependent Mobile ☐ Food Processor Type of Food: _____	
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I ATTEST TO THE ACCURACY AND INFORMATION PROVIDED IN THIS APPLICATION. I AGREE TO COMPLY WITH ALL APPLICABLE WYOMING LAWS AND REGULATIONS AND I UNDERSTAND THAT EACH SECTION OF THE LAWS AND REGULATIONS IS SEPARATELY AND COLLECTIVELY ENFORCEABLE. I AGREE TO ALLOW THE REGULATORY AUTHORITY ACCESS TO MY ESTABLISHMENT.

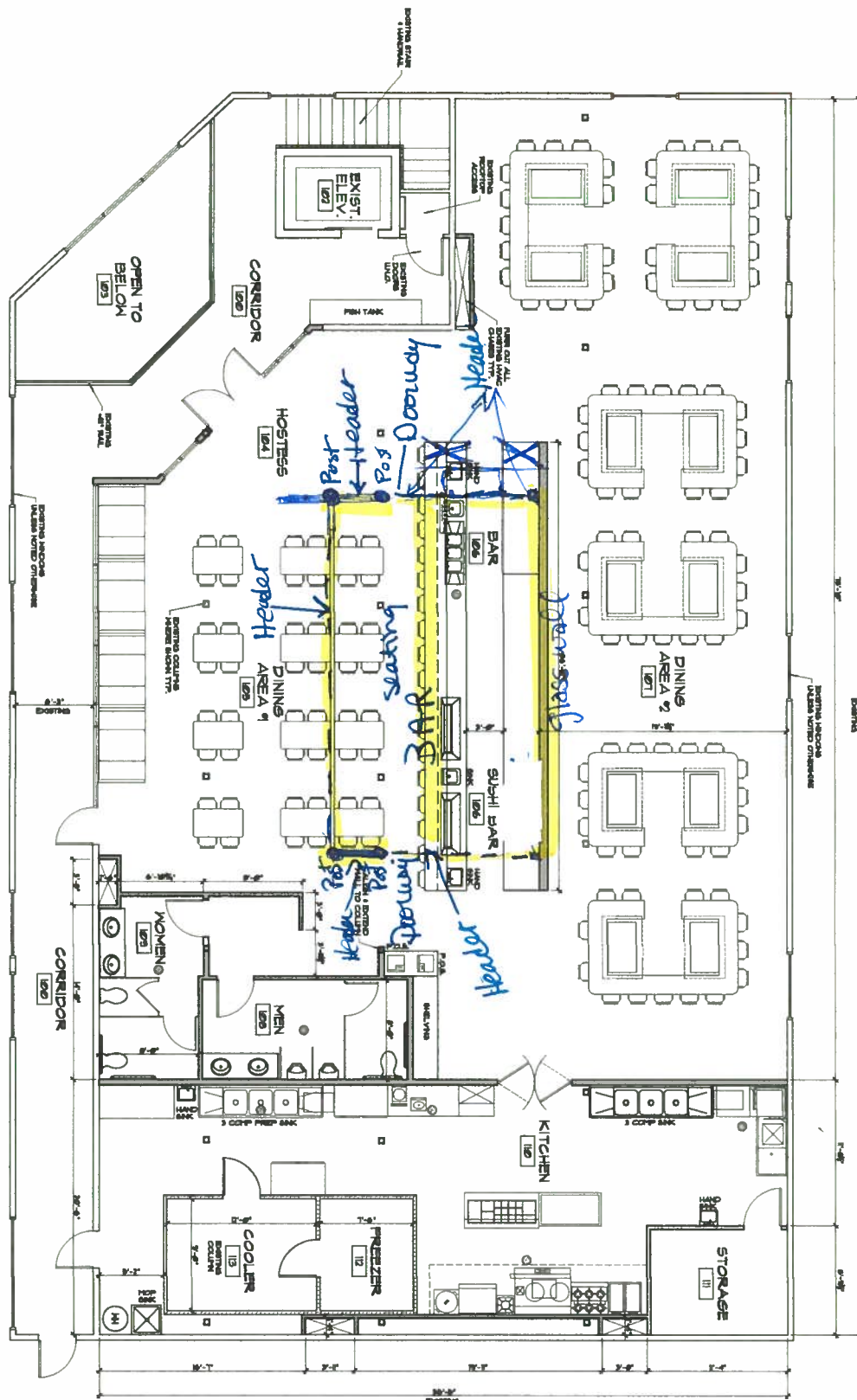
 SIGNATURE OF APPLICANT	<u>01/06/2014</u> DATE	_____ APPROVING OFFICIAL	<u>Laramie</u> COUNTY
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1 UPPER LEVEL FLOOR PLAN

WALL LEGEND

EXISTING WALLS

PROPOSED WALLS



A5.1

Sheet

DATE: 10/10/04
DRAWN: PPK
CHECKED: PPK
JOB NO.

UPPER LEVEL FLOOR PLAN

A TENANT IMPROVEMENT FOR:
**JAPANESE
HIBACHI RESTAURANT**

Cheng

Wynne

REVISIONS

1. 10/10/04

2. 10/10/04

3. 10/10/04

4. 10/10/04

5. 10/10/04

6. 10/10/04

7. 10/10/04

8. 10/10/04

9. 10/10/04

10. 10/10/04

Kenney & Lee
architects group, inc.

(970) 663-0548

Salad

House Salad	3
Seaweed Salad	5
Spicy Kani Salad	5
Avocado Salad	4
Squid Salad	5
Salmon Skin Salad	5

Soup

Miso Soup	2
Clear Soup	2
Seafood Soup	5

Kitchen Appetizer

<u>Edamame</u>	5
Light Salted Steamed Soybean	
<u>Tempura Calamari</u>	7
<u>Gyoza</u>	5
Pan Fried Dumpling	
<u>Yaki Tori</u>	5
Grilled Chicken Skewers	
<u>Beef Tataki</u>	7
Seared Sliced Steak with Ponzu Sauce	
<u>Tempura Appetizer</u>	6
Delicately Battered Fried Vegetables and Shrimp	
<u>Coconut Shrimp</u>	6
Jumbo Shrimp Fried with Coconut Batter	
<u>Beef Negimaki</u>	6
Scallion Wrapped With Beef, Served with Teriyaki Sauce	
<u>Soft Shell Crab</u>	7
Deep Fried With Tempura Batter	
<u>Harumaki</u>	5
Japanese Spring Roll	

Sushi Bar Appetizer

<u>Sushi Appetizer</u>	7
5 Pieces of Assorted Sushi	
<u>Sashimi Appetizer</u>	9
7 Pieces of Assorted Sliced Raw Fish	
<u>Tuna Tataki</u>	9
Seared Tuna with Ponzu Sauce Masago Scallions	
<u>Tako Su</u>	6
Octopus with Ponzu Sauce	
<u>Tuna/ Salmon Martini</u>	9
Tuna/ Salmon, Cucumber, Seaweed Salad with Special Sauce Served with Martini Glasses	
<u>Hamach Jalapeno</u>	9
Yellowtail Jalapeno Served with Ponzu Sauce and Chili Sauce	

MANY ITEMS ON MENU ARE SERVED RAW OR MAY CONTAIN RAW INGREDIENTS.
CONSUMING RAW MEATS, SEAFOOD OR SHELLFISH MAY INCREASE YOUR RISK OF FOODBORN ILLNESS.

Sushi and Sashimi

One Order—2 Pieces—Sushi & Sashimi

Sushi and Sashimi

<u>Tuna (Maguro)</u>	5
<u>Salmon (Sake)</u>	4.5
<u>Yellowtail (Hamachi)</u>	5
<u>White Tuna</u>	5
<u>Red Snapper (Tai)</u>	5
<u>Smoke Salmon (Kunsei Sake)</u>	5
<u>Mackerel (Saba)</u>	5
<u>Baked Eel (Unagi)</u>	5
<u>Crabmeat (Kani)</u>	3.5
<u>Egg (Tamago)</u>	4
<u>Octopus (Tako)</u>	4
<u>Surf Clam (Hokkigi)</u>	4.5
<u>Shrimp (Ebi)</u>	4
<u>Squide (Ika)</u>	4
<u>Flying Fish Roe (Tobiko)</u>	4.5
<u>Salmon Roe (Ikura)</u>	5
<u>Alaska King Crab</u>	8
<u>Sea Urchi (Uni)</u>	s/p

Spicy Rolls

Spicy Tuna Roll	5.5
Spicy Yellowtail Roll	6
Spicy Salmon Roll	5.5
Spicy Cucumber Scallop Roll	6
Spicy Ebi Kani Roll	5

Veggie Rolls

Avocado Roll	3.5
Cucumber Roll	3.5
Asparagus Roll	3.5
Vegetable Roll (5 Pieces)	4
Peanut Avocado Roll	4

Traditional Rolls or Hand Rolls

<u>Tuna Roll</u>	5
<u>Salmon Roll</u>	5
<u>Yellowtail Roll</u>	5.5
<u>Tuna Avocado Roll</u>	5
<u>Salmon Avocado Roll</u>	5
<u>Yellowtail Jalapenos Roll</u>	5
<u>California Roll</u>	5
<u>Crabmeat, Cucumber , Avocado</u>	
<u>Boston Roll</u>	5.5
Shrimp, Cucumber, Avocado	
<u>Alaska Roll</u>	5.5
Salmon, Cucumber, Avocado	
<u>Philadelphia Roll</u>	5
Smoke Salmon, Cream Cheese, Avocado	
<u>Eel Avocado or Eel Cucumber Roll</u>	6
<u>Salmon Skin Roll</u>	5
Salmon Skin, Cucumber, Eel Sauce	
<u>Spider Roll</u>	9
Soft Shell Crab Tempura, Lettuce, Cucumber , Avocado	
<u>Rainbow Roll</u>	10
Crabmeat, Cucumber, Avocado, 5 Different Fish on top	

Tempura Rolls

Make Tempura Eel Sauce

<u>Shrimp Tempura Roll</u>	6.5
<u>Chicken Tempura Roll</u>	5.5
<u>Sweet Potato Roll</u>	3.5
<u>White Tuna and Avocado Roll</u>	6.5
(Only White Tuna Deep Fried)	

MANY ITEMS ON MENU ARE SERVED RAW OR MAY CONTAIN RAW INGREDIENTS.
CONSUMING RAW MEATS, SEAFOOD OR SHELLFISH MAY INCREASE YOUR RISK OF FOODBORNE ILLNESS.

Chefs Special Rolls

<u>Bozeman</u>	9
Salmon, Cream Cheese, Avocado Inside, Make Tempura, Eel Sauce, Spicy Mayo	
<u>Black Dragon</u>	12
Shrimp Tempura, Asparagus inside, Eel, Avocado on top with Eel Sauce	
<u>Fantastic Lobster</u>	15
Lobster Tempura, Lobster Salad , Cream Cheese, Avocado, Masao wrapped with Soybean paper, Eel Sauce, and Spicy Mayo	
<u>King Royal</u>	15
Spicy Crabmeat, Crunch, Avocado inside, Alaska King Crab	
4 Different Tobiko on top Spicy Mayo	
<u>Golden Spider</u>	13
Soft Shell Crab Tempura, Lettuce, Spicy Crabmeat, Avocado, Masago wrapped With Soybean Paper, Eel Sauce, Spicy Mayo	
<u>Mango Tango</u>	14
Spicy King Crab, Crunch, Cucumber Wrapped in Soybean paper, Lobster Salad, Fresh Mango on top Honey Sauce	
<u>Salmon Lover</u>	11
Salmon Tempura, Avocado inside Fresh Salmon on Top with Spicy Mayo Crunch and Masago	
<u>Spicy Killer</u>	11
Spicy Tuna, Avocado inside Tuna, Salmon, White Tuna, Red Snapper, Jalapeno on top Spicy Mayo and Chili Sauce	
<u>Special Naruto</u>	12
Tuna, Salmon, Yellowtail, Crabmeat, Masago Wrapped with Cucumber Ponzu Sauce	
<u>Sweet Heart</u>	13
Tuna, Salmon , Yellowtail, White Tuna, Mango Masago wrapped with Pink Soybean paper and Honey Sauce	
<u>Volcano</u>	10
White Tuna, Crabmeat, Avocado, Make Roll Tempura, Served with Eel Sauce, Spicy Mayo, Chili Sauce, and Masago	
<u>Wasabi</u>	13
Salmon, White Tuna, Red Snapper, Crabmeat, Cream Cheese inside Make Tempura, Eel Sauce, Wasabi Mayo, and Wasabi Tobiko	
<u>Valentine Roll</u>	12
Spicy Tuna, Crunchy, Avocado inside, Fresh Tuna on the top, Eel and Honey Sauce	
<u>Paradise Roll</u>	16
Shrimp Tempura, Spicy King Crab, Fried Banana, Avocado, Spicy Kani, Mango wrapped with Soy Paper, Mango and Honey Sauce	
<u>Sexy Girl Roll</u>	14
Spicy King Crab, Mango, Avocado topped with Crab Meat, Strawberries, Strawberry Sauce	

MANY ITEMS ON MENU ARE SERVED RAW OR MAY CONTAIN RAW INGREDIENTS.

CONSUMING RAW MEATS, SEAFOOD OR SHELLFISH MAY INCREASE YOUR RISK OF FOOD BORNE ILLNESS.

Hibachi Entrée Selection

All entrees are expertly prepared on a specially make grill.
Served with soup, salad & 2 shrimp. Share a Plate for \$6.50

Enjoy the Show!

Hibachi

<u>Hibachi Chicken</u>	16
Chicken Tenders grilled with teriyaki sauce teppanyaki style	
<u>Habachi New York Steak</u>	19
Perfectly trimmed 8 oz choice cut	
<u>Hibachi Filet Mignon</u>	23
8 oz of the ultimate prime cut tenderloin	
<u>Hibachi Salmon</u>	19
Sushi Grade salmon filet	
<u>Hibachi Scallops</u>	23
Jumbo sea scallops cooked to perfection	
<u>Hibachi Shrimp</u>	20
10pcs of succulent jumbo shrimp	
<u>Hibachi Vegetables</u>	15
Mixed grilled seasonal veggies (no shrimp)	
<u>Hibachi Lobster</u>	30
Twin Lobster Tails	

Hibachi Combo

<u>Chicken & Shrimp</u>	20
<u>Chicken & New York Steak</u>	21
<u>Shrimp & New York Steak</u>	23
<u>Chicken & Scallops</u>	22
<u>Shrimp & Scallops</u>	24
<u>Scallops & New York Steak</u>	24
<u>Chicken & Lobster</u>	25
<u>Lobster & New York Steak</u>	28
<u>Surf & Turf</u>	33
<u>Chicken & Filet Mignon</u>	22
<u>Shrimp & Filet Mignon</u>	25
<u>Scallop & Filet Mignon</u>	27
<u>Lobster & Shrimp</u>	27
<u>Lobster & Scallops</u>	29
<u>New York Steak & Chicken & Shrimp</u>	27
<u>Filet Mignon & Chicken & Shrimp</u>	30
<u>Seafood Combo</u>	35
(Lobster, Shrimp , Scallop)	
<u>Wasabi Special</u>	40
(Filet Mignon , Lobster, Shrimp, and Scallop)	

Sushi Bar Entrees

Served with Soup and Salad

<u>Sushi Deluxe</u>	18
9 Pieces of Sushi and Tuna Roll	
<u>Sushi Regular</u>	15
7 Pieces of Sushi and California Roll	
<u>Sashimi Deluxe</u>	25
15 Pieces of the Chef's Freshest Fish Served with Rice	
<u>Sushi and Sashimi Deluxe</u>	27
5 Pieces of Sushi and 9 Pieces of Sashimi with Spicy Tuna Roll	
<u>Lover Salmon Platter</u>	18
7 Pieces of Salmon Sushi and Spicy Salmon Roll	
<u>Beginners Sushi Platter</u>	15
7 Pieces of Cooked Sushi and California Roll	
<u>Triple Colour Sushi Platter</u>	23
3 Pieces of Tuna, 3 Pieces of Salmon and 3 Pieces of Yellowtail Sushi and Spicy Tuna Roll	
<u>Spicy Maki Combo</u>	18
Spicy Tuna Roll, Spicy Salmon Roll, Spicy Yellowtail Roll	
<u>Love Boat</u> (for two)	45
7 Pieces of Sushi, 9 Pieces of Sashimi, 1 Spicy Salmon Roll, 1 Bozeman Roll, 1 Pink Lady Roll	
<u>Wasabi Special</u> (for four)	88
Mixed Variety of the Chef's Best of the Season	

Kitchen Teriyaki Entree

Dinner Entrees Served with Miso Soup, Salad and Rice

Cooked on our open charcoal grill with our house teriyaki sauce

<u>Chicken Teriyaki</u>	13
<u>Shrimp Teriyaki</u>	16
<u>New York Steak Teriyaki</u>	18
<u>Filet Mignon Teriyaki</u>	21
<u>Salmon Teriyaki</u>	17
<u>Lobster Teriyaki</u>	24
<u>Steak & Chicken Teriyaki</u>	18
<u>Steak & Shrimp Teriyaki</u>	19
<u>Steak & Scallop Teriyaki</u>	21
<u>Chicken & Shrimp Teriyaki</u>	17
<u>Filet Mignon & Chicken Teriyaki</u>	20
<u>Filet Mignon & Shrimp Teriyaki</u>	22
<u>Filet Mignon & Scallop Teriyaki</u>	25
<u>Filet Mignon & Lobster Teriyaki</u>	29

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CONSUMING RAW MEATS, SEAFOOD OR SHELLFISH MAY INCREASE YOUR RISK OF FOODBORNE ILLNESS.

Kitchen Tempura

Entrée

Delicately battered & Deep Fried with Tempura Dipping Sauce

Served with Miso Soup, Salad and Rice

Vegetable Tempura 9

Deep Fried Vegetables

Chicken Tempura 12

Deep Fried Chicken and Vegetables

Shrimp Tempura 15

Deep Fried Shrimp and Vegetables

Seafood Tempura 18

Deep Fried Shrimp, Scallops, Salmon, Crab and Vegetables

Noodles

Served with House Salad

Tempura Udon 13

Japanese Noodles with Shrimp Tempura
And Vegetables. Served in Broth

Nabeyaki Udon 14

Japanese Noodles with Shrimp Tempura
Chicken, Fish Cake and Egg served in Broth

Chicken Yaki Udon 12

Noodles Sauteed with Chicken and Vegetable

Ebi Yaki Udon 14

Noodles Sauteed with Shrimp and Vegetable

Donburi

Served with Miso Soup and House Salad

Chicken Katsu 12

Breaded Chicken Cutlet with Katsu Sauce

Ton Katsu 13

Breaded Pork Cutlet with Katsu Sauce

Fried Rice

Vegetable Fried Rice 8

Chicken Fried Rice 9

Beef Fried Rice 10

Shrimp Fried Rice 10

Dessert

Tempura Ice Cream 5

Tempura Banana 5

Ice Cream 3

Chocolate Mousse Cake 7

Tiramisu 6

Cheesecake 6

Children's Menu (12 & Under)

Children's menu items are served with a choice of Japanese Onion Soup or Salad, Vegetable , Shrimp Appetizer, Steamed Rice and Ice Cream.

<u>Hibachi Chicken Junior</u>	7
<u>Hibachi Sirloin Steak Junior</u>	9
<u>Hibachi Shrimp Junior</u>	9
<u>Hibachi Filet Mignon Junior</u>	12

Side Order Served with your Entrée

<u>Side Fried Rice</u>	3
<u>Side Steamed Rice</u>	1
<u>Side Noodle</u>	3
<u>Side Vegetable</u>	3
<u>Side Chicken</u>	5
<u>Side Shrimp</u>	6
<u>Side New York Steak</u>	7
<u>Side Scallop</u>	7
<u>Side Salmon</u>	6
<u>Side Filet Mignon</u>	9
<u>Side Lobster</u>	12

Dessert

<u>Tempura Ice Cream</u>	5
<u>Tempura Banana</u>	5
<u>Ice Cream</u>	3
<u>Chocolate Mousse</u>	7
<u>Tiramisu</u>	6
<u>Cheesecake</u>	6

MANY ITEMS ON MENU ARE SERVED RAW OR MAY CONTAIN RAW INGREDIENTS.
CONSUMING RAW MEATS, SEAFOOD OR SHELLFISH MAY INCREASE YOUR RISK OF FOODBORN ILLNESS.

Cocktails

Mai Tai

Dark Rum, Orange Curacao, Lime Juice, Triple Sec, Amaretto, Pineapple Juice, Grenadine

Blue Hawaiian

Glue Curacao, Light Rum, Pineapple Juice, and sour Mix

Long Island Ice Tea

Rum, Gin, Vodka, Tequila, Triple Sec, Sour Mix, and Coke

Margarita

Tequila, Triple Sec, and Lime Juice

Sea Breeze

Vodka, Cranberry Juice, Grapefruit Juice, and Lime Wedge

Bloody Mary

Vodka, Worcestershire Sauce, Tabasco Sauce, Lemon Juice, Celery Salt, Pepper and Tomato Juice.

Pina Colada

Gold Rum, Cream of Coconut and Pineapple Juice

Daiquiri

Choice of Frozen Banana, pineapple and Strawberry

Tequila Sunrise

Tequila, Orange Juice, and Grenadine

Zombie

Rum, Apricot Brandy

Geisha

Rum Banana Liqueur, Orange Juice and Pineapple

Sex on the Beach

Vodka, Midori, Chambord, Pineapple Juice, and Cranberry Juice

Sakitini's

Sakitini

Sake, Compari, Gin, Splash of Orange Juice and Served Up

Sake To Me

Sake, Grand Marnier, Plum Wine, Orange Juice, Served Up with Orange Twist

Sake Tsunami

Sake, Skyy Vodka, Watermelon Schnapps, Sweet & Sour, Orange Juice, Served on the Rocks

Sake Sour

Sake, Skyy Vodka, Sour Apple, Splash of Cranberry Juice, Chilled and Served Straight Up

Cosmo Sake

Sake, Skyy Vodka, Cointreau, Lime Juice, Splash of Cranberry Juice and Served up

Specialty Martinis

Lychee Martini

Malibu Passion Fruit, Coconut Rum, Lychee, and Pineapple Juice, Garnished with Lychee

Lemon Drop

Absolut Citron, Fresh Squeezed Lemon, Sugar Rim and Lemon Wedge

Caramel Apple Tini

Butterscotch Schnapps, Three Olives Apple, Apple Schnapps, Sour Mix, Caramel Swirl, and Apple Slice

Godiva Chocolate

Three Olives Chocolate, Stoli Vanilla, Godiva Chocolate Half & Half, Chocolate Swirl and Shavings

Hazelnut Espresso

Frangelico Hazelnut, Stoli Vanilla, Godiva, Fresh Espresso, Half & Half, Topped with Espresso Beans

Butter Finger-Tini

Butterscotch Schnapps, Carmel Baileys Irish Cream Frangelico, Half & Half, Chocolate Swirl and Butterfinger Crumbles

Pineapple Upside Down Cake

Malibu Coconut, Stoli Vanilla, Pineapple Juice Grenadine, Pineapple Slice and Cheery

Cosmopolitan

Citron Vodka, Cointreau, Lime Juice & Cranberry Juice

Soft Drinks

Pepsi, Diet Pepsi, Cherry Pepsi, Root Beer, 7 Up, Mtn Dew, Lemonade, Ice Tea, Raspberry Ice Tea, Hot Tea

2.00

Orange Juice, Cranberry Juice, Japanese Soda, \Shirly Temple

3.00

Clark's

SHOPPING CENTER LEASE AGREEMENT

RGLM, Inc.
a Wyoming corporation
(the Landlord)

and

Wasabi Japanese Steakhouse, Inc
Mingyang Zhu

RM
MYZ

(the Tenant)

at

Avanti Piazza

Dated: September 30, 2014

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(c) Landlord shall not be required to keep the Security Deposit separate from its general funds, and Tenant shall not be entitled to interest in the Security Deposit. If Tenant shall fully and faithfully perform every provision of this Lease to be performed by it, the Security Deposit or any balance thereof shall be returned to Tenant within thirty (30) days following the expiration of the Lease term, provided that Landlord may retain the Security Deposit until such time as any amount due from Tenant under this Lease has been determined and paid in full. If any monies are withheld from the same, Landlord shall provide a written accounting as to why the monies were withheld.

(d) Should the entire deposit or any portion thereof be applied by Landlord for the payment of rent or any other sums due and payable to Landlord by Tenant, then Tenant shall, upon written demand by Landlord, remit to Landlord a sufficient amount in cash to restore said Security Deposit to the original sum deposited (or the balance thereof which should exist as such deposit pursuant to the terms set forth above), and Tenant's failure to do so within twenty (20) days after service of notice of such demand shall constitute a default by Tenant hereunder.

(e) Should Landlord convey its interest under the Lease, the deposit or the part or portion thereof not previously applied, shall be turned over to Landlord's grantees or assignees; and Tenant hereby releases Landlord from any liability with respect to the deposit and Tenant agrees to look solely to such grantee or assignee. This provision shall also apply to subsequent grantees or assigns. Tenant agrees it will not assign, pledge, mortgage or otherwise hypothecate its interest in the Security Deposit.

ARTICLE 5. ADDITIONAL RENT

5.1 ADDITIONAL RENT OWED BY TENANT. As Additional Rent, Tenant will pay its proportionate share of all taxes, insurance, utilities and operating costs (all of which are separately discussed below) incurred by Landlord in operating the Common Areas of the Shopping Center ("Additional Rent"). Operating cost expenses for the Common Areas include but are not limited to the following: snow removal, landscaping, parking lot maintenance, management fees, trash removal, water and sewer, heating and air conditioning, any maintenance on the property or building and other similar expenses. Tenant's proportionate share of these expenses shall be determined ("Tenant's Proportionate Share") by Landlord. Once determined, Landlord will provide Tenant with a break down of Tenant's Additional Rent owed.

5.2 PAYMENT OF ADDITIONAL RENT.

(a) The amounts payable by Tenant as Additional Rent may be estimated (and estimates may be revised) by Landlord, and Tenant agrees to pay to Landlord Tenant's share of the Additional Rent as so estimated in monthly installments in advance on the first (1st) day of each month during the Term together with the rent. If bills for operating expenses are received during the course of a calendar year and the costs incurred by Landlord according to the bills exceed the estimated payments on account of the operating costs received to that date, Landlord can immediately bill Tenant for Tenant's Proportionate Share of the deficiency and Tenant will pay the same within ten (10) days after receipt of said bills.

(b) Within one hundred eighty (180) days after the end of each calendar year, Landlord will determine and advise Tenant by statement of the exact amount of the Additional Rent payable by Tenant, and, if necessary, an adjustment will be made between the parties within fifteen (15) days after Tenant has been advised of the actual calculations. Landlord's failure to furnish any statements within the time period set forth herein does not limit or otherwise affect Landlord's right or Tenant's obligation to readjust Tenant's Proportionate Share of the Additional Rent. This provision shall survive the termination of this Lease.

5.3 PAYMENT FOR UTILITIES AND SERVICES.

(a) If the Premises are separately metered and/or assessed for utilities and services used or consumed in or in connection with the Premises or the operation of Tenant's business therein including, without limitation, water, sewer, electricity, gas, oil, heat, steam and heated and/or chilled water, telephone or other communication services (the "Utilities"), then, immediately upon receipt by Tenant of the bills and statements issued by the utility

and other companies providing the Utilities (the "Suppliers"), Tenant will pay directly to the Suppliers all charges and fees for the Utilities.

(b) If Landlord is billed by the Suppliers for any Utilities which are not separately metered or assessed or which are only partially separately metered or assessed and which are used by Tenant in common with other tenants or occupants of the Shopping Center, Tenant will pay to Landlord, within ten (10) days of demand, Tenant's Proportionate Share of the charges and fees billed to Landlord for the Utilities.

ARTICLE 6. TAXES AND ASSESSMENTS

6.1 TENANT'S PROPORTIONATE SHARE OF TAXES. Tenant shall pay to Landlord, as Additional Rent, Tenant's Proportionate Share of all real estate and other ad valorem taxes and assessments of every kind and nature (including, but not limited to, general and special assessments, change in ownership taxes or assessments, liens, bond obligations, license fees or taxes, foreseen as well as unforeseen, and any similar impositions in lieu of other impositions now or previously within the definition of real property taxes or assessments) with respect to the land described on Exhibit A and improvements located thereon. Such taxes and assessments are collectively called the "Taxes."

6.2 PAYMENT BY TENANT. The tax payment required under Section 6.1 shall be paid by Tenant, at the times and in the manner provided in Article 5, in equal consecutive monthly installments in such amounts as are estimated and billed for each fiscal tax period by Landlord. The first such installment shall be due and payable by Tenant on the date set forth in Section 1.1(h). Taxes for the first and last tax year in the Term shall be prorated. After Taxes are paid, Landlord will notify Tenant of the amount of Tenant's Proportionate Share of Taxes. If the aforesaid monthly payments for a given period are greater than Tenant's Proportionate Share of Taxes payable for such period, Tenant shall receive a credit from Landlord for the excess or, if the Lease has terminated, Landlord will refund such difference to Tenant within thirty (30) days after the Taxes are paid by Landlord. If it is determined that said payments are less than Tenant's said share, Tenant shall pay Landlord the difference within thirty (30) days after notice from Landlord.

6.3 PERSONAL PROPERTY TAXES. Tenant shall be liable for, and shall pay before delinquency, all taxes and assessments (real and personal) levied against (a) any personal property or trade fixtures placed by Tenant in or about the Premises (including any increase in the assessed value of the Premises based upon the value of any such personal property or trade fixtures), and (b) any Tenant improvements or alterations in the Premises (whether installed and/or paid for by Landlord or Tenant). If any such taxes or assessments are levied against Landlord or Landlord's property, Landlord may, after written notice to Tenant (and under proper protest if requested by Tenant), pay such taxes and assessments, and Tenant shall reimburse Landlord therefor within ten (10) days after demand by Landlord; provided, however, Tenant, at its sole cost and expense, shall have the right, with Landlord's cooperation, to bring suit in any court of competent jurisdiction to recover the amount of any such taxes and assessments so paid under protest.

ARTICLE 7. OPERATION OF THE SHOPPING CENTER

7.1 OPERATION OF THE SHOPPING CENTER

(a) Landlord will operate and maintain the Shopping Center and Common Areas in such manner as would a prudent landlord of a similar shopping center property considering size, age and location.

(b) The Shopping Center and the Common Areas are at all times subject to the exclusive control, management and operation of Landlord. Landlord has the right, in its control, management and operation of the Shopping Center and the Common Areas or, in order to comply with governmental authorities, to, at any time or times: (i) obstruct or close off all or any part of the Shopping Center or the Common Areas for the purpose of maintenance, repair or construction; and (ii) subject to the terms of Section 1.4, make any relocations or rearrangement of, or modifications to, the site plan or the buildings and improvements constituting part of the

Shopping Center or the Common Areas and construct additional buildings or other improvements on the Shopping Center.

(c) In the exercise of its rights under this Article 7, Landlord will use its best efforts to ensure that Tenant's use and business, as well as traffic ingress and egress to and from the Premises is not unreasonably interfered with.

(d) Landlord will proceed as expeditiously as possible to complete its work and other activities so as to minimize interference with Tenant's business. Notwithstanding the foregoing, Landlord is not subject to any liability, nor is Tenant entitled to any compensation or abatement of rent, as a result of Landlord's exercise of its rights conferred under Article 7 or any other provision of the Lease.

ARTICLE 8. USE OF PREMISES

ARTICLE 8.1 TENANT'S USE. The Premises shall be used and occupied by Tenant solely for a _____ or any other legal use and for no other purposes without Landlord's prior written consent. Tenant shall comply with all rules, regulations and laws of any governmental authority with respect to use and occupancy.

ARTICLE 8.2 CONDUCT OF BUSINESS. Tenant will conduct its business in the Premises in a professional and legal manner. Without limiting the generality of the foregoing:

(a) Tenant will not use, permit or suffer the use of the Premises, or any part thereof, for any of the following businesses or activities: (i) any act or omission which constitutes a nuisance, waste upon, or damage to the Premises or any other portion of the Shopping Center; or (ii) any act or omission which, in Landlord's good faith opinion, hinders or interrupts the flow of traffic into, within and from the Shopping Center.

(b) Landlord has the right to cause Tenant to discontinue (and Tenant will immediately discontinue) any business activity which Landlord, acting reasonably, determines is either prohibited by or not permitted under Section 8.1 or Section 8.2. After Tenant commences its business pursuant to the terms hereof, Tenant will: (i) at all times throughout the Term, conduct continuously, actively and diligently the business set forth in Section 8.1 in the whole of the Premises; (ii) install in the Premises and keep in good order and condition, free from liens or rights of third parties, only fixtures and equipment of first-class quality; and (iii) conduct its business in the Premises during at least those hours required pursuant to any rules and regulations established by Landlord.

ARTICLE 8.3 COMPLIANCE WITH LAW.

(a) Both parties will, at their expense and subject to Section 11.5: (i) comply with all provisions of law, including, without limitation, all statutes, regulations, ordinances, and other requirements of municipal, county, state, federal and other governmental bodies, agencies or departments, which now or hereafter pertain to or affect the Premises (and, with regards to the Landlord, also the Shopping Center) or require or govern the making of any repairs, alterations or other changes of or to the Premises (or with regards to the Landlord, to the Shopping Center) or Tenant's use thereof; and (ii) obtain all necessary permits, licenses and approvals relating to the use of the Premises and the conduct of business therein.

(b) Landlord certifies that the Shopping Center and the Premises are in compliance with the American With Disabilities Act (as amended from time to time, the "ADA"). Tenant agrees that it will do nothing to impair such ADA compliance on the Premises or Shopping Center.

8.4 HAZARDOUS SUBSTANCES.

(a) Unless otherwise provided herein, Tenant shall not use or permit the use of the Premises for the generation, storage, treatment, use, transportation, handling or disposal of any chemical, material or substance which is regulated as toxic or hazardous or exposure to which is prohibited, limited or regulated by any governmental authority, or which, even if not so regulated, may or could pose a hazard to the health or safety of persons on the

Premises or other tenants or occupants of the Shopping Center or property adjacent thereto, and no such chemical, material or substance shall be brought unto the Premises without the Landlord's express written approval. Tenant agrees that it will at all times observe and abide by all laws and regulations relating to the handling of such materials and will promptly notify Landlord of (i) the receipt of any warning notice, notice of violation, or complaint received from any governmental agency or third party relating to environmental compliance and (ii) any release or hazardous materials on the Premises and/or Shopping Center. Tenant shall, in accordance with all applicable laws, carry out, at its sole cost and expense, any remediation required as a result of the release of any hazardous substance by Tenant or by Tenant's agents, employees, contractors or invitees, from the Premises and/or Shopping Center. Notwithstanding the foregoing, Tenant shall have the right to bring on the Premises reasonable amounts of cleaning materials and substances, chemicals, or materials that are necessary for the operation of the Tenant's business, but Tenant's liability with respect to such materials shall be as set forth in this Article.

(b) To the fullest extent permitted by law, Tenant agrees to promptly indemnify, protect, defend and hold harmless Landlord and Landlord's partners, officers, directors, employees, agents, successors and assigns (collectively, "Landlord Parties") from and against any and all claims, damages, judgments, suits, causes of action, losses, liabilities, penalties, fines, expenses and costs (including, without limitation, clean-up, removal, remediation and restoration costs, sums paid in settlement of claims, reasonable attorneys' fees, consultant fees and expert fees and court costs) which arise or result from any environmental contamination on, in, under or about the Premises or any other portion of the Shopping Center and which are caused or permitted by Tenant or any of Tenant's agents, employees, subtenants, assignees, licensees, contractors or invitees (collectively, "Tenant's Parties").

(c) The provisions of this Article shall survive the termination of this Lease.

8.5 REQUIREMENTS AND RESTRICTIONS. Tenant agrees that it:

(a) will not use or permit the use of any apparatus for sound reproduction or transmission or of any musical instrument in such manner that the sounds so reproduced, transmitted or produced shall be audible beyond the interior of the Premises; will not utilize an advertising medium with the Shopping Center which can be seen, heard or experienced outside the Premises, including, but not limited to, flashing lights, searchlights, loudspeakers, phonographs, radio or television; will not display, paint or cause to be displayed, painted or placed, any handbills, bumper stickers or other advertising devices on any vehicle parked in the parking area of the Shopping Center; will not distribute, or cause to be distributed, in the Shopping Center any handbills or other advertising devices; and will not conduct or permit any activities that might constitute a nuisance;

(b) will keep all mechanical apparatus free of vibration and noise which may be transmitted beyond the confines of the Premises; will not cause or permit strong, unusual, offensive or objectionable noise, odors, fumes, dust or vapors to emanate or be dispelled from the Premises; will not burn trash or store or permit accumulations of any trash, garbage, rubbish or other refuse outside of the Premises except in compactors or other receptacles approved by Landlord;

(c) will not load or permit the loading or unloading of merchandise, supplies or other property, nor ship, nor receive, outside the area and entrance designated therefor by Landlord from time to time; will not permit the parking or standing, outside said area, of trucks, trailers or other vehicles or equipment engaged in such loading or unloading in a manner to interfere with the use of any Common Areas or any pedestrian or vehicular use and good shopping practice; will use its best efforts to complete or cause to be completed all deliveries, loading, unloading and services to the Premises prior to 10:00 a.m. each day;

(d) will not paint or decorate any part of the exterior of the Premises, or change the architectural treatment thereof, or install any visible protective devices such as burglar bars or security shutters or window tinting, without first obtaining Landlord's written approval; and will remove promptly upon order of Landlord any paint, decoration or protective device which has been applied to or installed upon the exterior of the Premises without Landlord's prior approval, or take such other action with reference thereto as Landlord may direct;

(e) will keep the inside and outside of all glass in the doors and windows of the Premises clean; will not place or maintain any merchandise, vending machines or other articles in the vestibule or entry of the Premises, on

the footwalks adjacent thereto or elsewhere on the exterior thereof; will maintain the Premises at its own expense in a clean, orderly and sanitary condition and free of insects, rodents, vermin and other pests; and will keep refuse in proper containers on the interior of the Premises until removed from the Premises;

(f) will comply (at its sole cost and expense) with all laws, rules, regulations, orders and guidelines now or hereafter in force relating to or affecting the use, occupancy, alteration or improvement of the Premises and will not use or permit the use of any portion of the Premises for any unlawful purpose or in violation of any recorded covenants, condition and restrictions affecting the Shopping Center;

(g) will not place, permit or maintain on the exterior walls or roof of the Premises any sign, advertising matter, decoration, lettering, insignia, emblems, trademark or descriptive material (herein called "Signs") and will not permit any Signs to remain or be placed on any window or door of the Premises unless the same have been approved in writing by Landlord, such approval not to be unreasonably withheld; and will maintain any and all Signs as may be approved in good condition and repair at all times, Landlord reserving the right to do so at Tenant's expense if Tenant fails to do so after five (5) days' notice from Landlord; Tenant acknowledges that it will install its approved Signs within thirty (30) days from date of possession of the Premises;

(h) will keep the display windows in the Premises electrically lighted and any and all electric signs lighted during all other periods that a majority of tenants are open for business in the Shopping Center; and

(i) will not use the sidewalks adjacent to the Premises, or any other space outside of the Premises, for the sale or display of any merchandise or for other business, occupation or undertaking.

8.6 SIGNAGE AND ADVERTISING. Tenant shall not place on any door, wall or window of the Premises any sign or advertising matter without first obtaining Landlord's written approval and consent, such consent not to be unreasonably withheld. Any signage approved by Landlord shall be at Tenant's own expense, which sign shall: (i) conform to the general material, size and appearance of other tenants' signs at the Shopping Center, (ii) be in strict conformity with any guidelines or sign criteria adopted by Landlord with respect to the Shopping Center, (iii) be in accordance with all applicable laws; (iv) be installed by a contractor or other party which meets with Landlord's prior approval, which will not be unreasonably withheld, and (v) be otherwise subject to Landlord's prior written approval. Tenant shall not install or erect any other signs, advertisements or other visual displays at, on or in the Premises which are visible from the exterior thereof without the prior written approval of Landlord. Any window signs or displays which are approved by Landlord shall be made with artist's lettering and otherwise with a professional appearance. Landlord, at Tenant's sole cost and expense, may remove any signs or displays which are objectionable to Landlord. In addition, if at any time during the Term, Landlord determines to replace the sign above the exterior of the Premises in connection with a general renovation of the Shopping Center or otherwise, then Landlord shall pay (or reimburse to Tenant, as the case may be) the cost of replacing such sign. No sign criteria currently exists, therefore, all signage is subject to City guidelines and approval and subject to Landlord approval.

8.7 EFFECT ON LANDLORD'S INSURANCE. Tenant shall not do or suffer to be done, or keep or suffer to be kept, anything in, upon or about the Premises which will contravene Landlord's policies insuring against loss or damage by fire or other hazards, or which will prevent Landlord from procuring such policies with companies acceptable to Landlord, or which will cause an increase in the insurance rates upon any portion of the Shopping Center. If Tenant violates any prohibition provided for in the first sentence of this Section, Landlord may, without notice to Tenant (and without limiting any of Landlord's other rights and remedies hereunder, at law or in equity), correct the same at Tenant's expense. Tenant agrees to pay Landlord as Additional Rent after ten (10) days' written notice the amount of any increase in premiums for insurance resulting from any violation of the first sentence of this Section, unless Landlord has consented to the doing of or keeping of anything on the Premises which constitutes such a violation (but the payment of such Additional Rent shall not entitle Tenant to violate the provision of the first sentence of this Section).

ARTICLE 9. COMMON AREAS

9.1 USE BY TENANT; MAINTENANCE. Tenant and its employees and invitees are, except as otherwise specifically provided in this Lease, authorized, empowered and privileged during the Term to use the Common Areas for their respective intended purposes in common with other persons. Landlord agrees to maintain, as part of Common Area Costs, the Common Areas in good condition and keep the same properly lighted during periods that a majority of the Shopping Center is open and for a reasonable period thereafter; provided, however, that the manner in which the Common Areas shall be maintained shall be solely determined by Landlord.

9.2 COMMON AREAS DEFINED. "Common Areas" means all areas, facilities and improvements provided in the Shopping Center from time to time for the convenience and use of patrons of the Shopping Center, and shall include, but not be limited to, the parking areas and facilities, sidewalks, stairways, service corridors, truckways, ramps, loading docks, delivery areas, landscaped areas, access and interior roads, lighting facilities and similar areas and facilities situated within the Shopping Center which are not reserved for the exclusive use of any Shopping Center occupants.

9.3 RULES AND REGULATIONS. Tenant agrees to comply with such reasonable rules and regulations as Landlord may deem necessary or advisable for the proper efficient use, operation and maintenance of the Common Areas and all reasonable non-discriminatory modifications thereof and additions thereto from time to time put into effect and furnished to Tenant by Landlord. Landlord shall endeavor to enforce such rules and regulations, but shall have no liability to Tenant for the violation or non-performance by any other tenant or occupant of the Shopping Center of any such rules and regulations, which are attached hereto as Exhibit C.

9.4 LANDLORD'S CONTROL. Landlord shall at all times during the Term have the sole and exclusive control, management and direction of the Common Areas and, subject to the terms hereof, the right to make reasonable changes to the Common Areas, and may at any time and from time to time during the Term exclude and restrain any person from use or occupancy thereof, excepting, however, Tenant and other tenants of Landlord and bona fide invitees of either who make use of the said areas in accordance with the rules and regulations established by Landlord from time to time with respect thereto. The rights of Tenant in and to the Common Areas shall at all times be subject to the rights of others to use the same in common with Tenant. Landlord may at any time and from time to time close all or any portion of the Common Areas to make repairs, improvements, alterations or changes and, to the extent necessary in the opinion of Landlord, to prevent a dedication thereof or the accrual of any rights to any person or to the public therein. Landlord may close temporarily any or all portions of the Common Areas to discourage non-customer parking and use and to do and perform such other acts in and to the Common Areas as, in the exercise of good business judgment, Landlord shall determine to be advisable with a view to the improvement of the convenience and use thereof by occupants and tenants, their employees and invitees. Provided Landlord does not materially interfere with Tenant's use of and access to the Premises, Landlord's rights shall also include, but not be limited to, the right to (a) restrain persons from any unauthorized use of the Common Areas; and (b) subject to Section 1.4 hereof, reasonably change the shape and size of the Common Areas, add, eliminate or change the location of improvements to the Common Areas, including, without limitation, buildings, lighting, parking areas, landscape areas, roadways, drive aisles, walkways and curb cuts.

9.5 EMPLOYEE PARKING. Landlord may from time to time designate a particular parking area or areas to be used by its tenants. If it does so, Tenant and its employees shall park their vehicles only in those portions of the Shopping Center designated for that purpose by Landlord. If Tenant or any of its employees fail to park their vehicle in any such designated parking areas, Landlord, in its sole discretion, may give Tenant notice of such violation and, if the violation is not corrected within two (2) days after said notice is given, Tenant shall pay to Landlord an amount equal to Fifty Dollars (\$50) for each violation. In no event, however, shall Landlord be required to enforce any parking obligation stated herein. All amounts due under the provisions of this Section shall be payable by Tenant on demand as Additional Rent within ten (10) days after demand therefor. Tenant shall notify each of its employees of the provisions of this Section prior to their commencing any employment in connection with the Premises. Tenant shall be responsible for ensuring that its employees comply with all the provisions of this Section and such other parking rules and regulations as may be adopted and implemented by Landlord from time to time.

9.6 COMMON AREA COSTS. "Common Area Costs" means all costs incurred in a manner deemed by the Landlord to be reasonable and appropriate and for the best interests of the Shopping Center in connection with the operation, maintenance, replacement and repair of the Common Areas, including, but not limited to, the costs and expenses of:

(a) operating, maintaining, repairing, lighting (including, without limitation, the cost of the electricity therefor), providing security for, cleaning, painting and striping of, and removing debris from, the Common Areas, backflow prevention, and roofs; compacting and removing garbage and trash from the Shopping Center, maintaining and repairing main line sewer, duct, conduits and similar items, fire protection systems, utility, sprinkler and security alarm systems, storm and sanitary drainage systems and other utility systems, Shopping Center signs (whether owned by Landlord or rented and whether or not located on the Shopping Center) and decorations on and off the Shopping Center site, directional signs and markers, and on- and off-site traffic regulation and control signs and devices;

(b) planting, replanting and replacing flowers, shrubbery, plants, trees and other landscaping, and all water used to irrigate flowers, shrubbery, plants, trees and other landscaping located on Common Areas;

(c) repair, resurface, replacement and maintenance of the parking areas;

(d) cost of pest control for the Common Areas and the cost of termite protection for the Common Areas;

(e) maintenance, repair, inspection of all machinery, equipment and systems used in the operation, maintenance or security of the Common Areas and all personal property taxes and other charges incurred in connection with such equipment.

Notwithstanding the foregoing, the Common Area Costs shall not include depreciation of costs or expenses in connection with the original construction and installation of the Common Areas or Common Area Costs which are classified as capital expenditures under generally accepted accounting principals, provided, however, that the costs of improvements to the Common Areas intended to reduce Common Area Costs or as may from time to time be required by any laws, ordinances, rules or regulations of any governmental authority or agency having jurisdiction thereof shall be includable in Common Area Costs.

ARTICLE 10. LIABILITY, INDEMNITY AND INSURANCE

10.1 LANDLORD'S LIABILITY. Landlord shall not be liable for any damage or liability of any kind or for any injury to or death of any person or damage to any property on or about the Premises from any cause whatsoever, except to the extent any such matter is not covered by insurance required to be maintained by Tenant under this Lease and is attributable to Landlord's fault, negligence or willful misconduct. Landlord hereby agrees to indemnify and save Tenant harmless from all claims, actions, judgments, suits, losses, fines, penalties, demands, costs and expenses and liability whatsoever, including reasonable attorneys' fees, expert fees and court costs ("Landlord Indemnified Claims") on account of (i) any damages or liability suffered by Tenant or its employees, agents, patients, invitees or contractors ("Tenants' Parties") as attributable to Landlord's negligence or willful misconduct or (ii) any default by Landlord of any obligations on Landlord's part to be performed under the terms of this Lease. In case any action or proceeding is brought against Tenant or any Tenant Parties by reason of any such Landlord Indemnified Claims, Landlord, upon notice from Tenant, shall defend the same at Landlord's expense by counsel approved in writing by Tenant, which approval shall not be unreasonably withheld. Landlord shall not be liable for damage or injury occasioned by the fault, negligence or willful acts of the Tenant or its agents, contractors, servants or employees unless such damages or injury arises from perils against which Landlord is required by this Lease to insure and then only to the extent of such insurance. Landlord's indemnification obligation under this Section 10.1 shall survive the expiration or earlier termination of this Lease. Landlord's covenants, agreements and indemnification in Sections 10.1, 10.2 and 10.7 are not intended to and shall not relieve any insurance carrier of its obligations under policies required to be carried by Landlord pursuant to the provisions of this Lease.

10.2 INDEMNIFICATION BY TENANT. Tenant hereby agrees to indemnify and save Landlord harmless from all claims, actions, judgments, suits, losses, fines, penalties, demands, costs and expenses and liability whatsoever, including reasonable attorneys' fees, expert fees and court costs ("Tenant Indemnified Claims") on account of (i) any damages or liability incurred by Landlord occasioned in whole or in part by any use or occupancy of the Premises or by any act or omission of Tenant or the Tenant's Parties, (ii) the use of the Premises and Common Areas and conduct of Tenant's business by Tenant or any Tenant Parties, or any other activity, work or thing done, permitted or suffered by Tenant or any Tenant Parties, in or about the Premises or elsewhere on the Shopping Center; and/or (iii) any default by Tenant of any obligations on Tenant's part to be performed under the terms of this Lease. In case any action or proceeding is brought against Landlord or any Landlord Parties by reason of any such Tenant Indemnified Claims, Tenant, upon notice from Landlord, shall defend the same at Tenant's expense by counsel approved in writing by Landlord, which approval shall not be unreasonably withheld. Tenant shall not be liable for damage or injury occasioned by the fault, negligence or willful acts of the Landlord or its agents, contractors, servants or employees unless such damages or injury arises from perils against which Tenant is required by this Lease to insure and then only to the extent of such insurance. Tenant's indemnification obligation under this Section 10.2 shall survive the expiration or earlier termination of this Lease. Tenant's covenants, agreements and indemnification in Sections 10.1, 10.2 and 10.7 are not intended to and shall not relieve any insurance carrier of its obligations under policies required to be carried by Tenant pursuant to the provisions of this Lease.

10.3 MUTUAL WAIVERS. Landlord and Tenant hereby waive any rights they may have against each other on account of any loss or damage occasioned to Landlord or Tenant, as the case may be, their property, the Premises, its contents, or arising from any risk covered by fire and extended coverage insurance (or would have been covered under any such insurance had such insurance been maintained as required herein). The parties are hereto each, on behalf of their respective insurance companies insuring the property of either Landlord or Tenant against any such loss, waive any right of subrogation that it may have against Landlord or Tenant, as the case may be. This release shall be effective only so long as the applicable insurance policies contain a clause to the effect that this release shall not affect the right of the insured to recover under such policies. Each party agrees that its insurance policies will include such a clause only for so long as it is includable without extra cost or, if extra cost is chargeable therefor, only so long as the other party pays such extra cost. If extra cost is chargeable therefor, the party will advise the other of the amount thereof and the other party may, but shall not be obligated to, pay such charge. The foregoing waivers shall be in addition to, and not a limitation of, any other waivers or releases contained in this Lease.

10.4 TENANT'S INSURANCE.

(a) Tenant agrees that, from and after the date of delivery of the Premises Tenant shall, at Tenant's sole cost and expense during the Lease Term, obtain and maintain in full force and effect insurance upon all glass and plate glass in the Premises, Special Form (FKA All Risk Insurance) including fire and extended coverage upon Tenant's merchandise, signage, inventory, equipment, heating, ventilating and air conditioning ("HVAC") equipment, furniture, other personal property, fixtures and all improvements installed in the Premises for the full replacement value thereof, property damage insurance, including sprinkler damage and vandalism and malicious mischief damage and public liability insurance with respect to the Premises and the business conducted by Tenant and any other persons in the Premises. In the event that there shall be a dispute as to the amount that comprises full replacement value, the decision of Landlord or mortgagees of Landlord shall be presumptive. In addition, Tenant, at Tenant's sole cost and expense, shall also procure and maintain throughout the Lease Term the following insurance: (i) commercial general liability insurance against claims for bodily injury, personal injury, advertising injury and property damage arising from the Premises, or the use of any portion of the Common Areas by the Tenant or the Tenant Parties, and having limits of not less than (a) \$1,000,000 per occurrence, (b) \$2,000,000 for the general aggregate (per location), (c) \$2,000,000 for the products and completed operations aggregate, (d) \$1,000,000 for personal and advertising injury liability, (e) \$50,000 for fire damage liability, and (f) \$5,000 for medical payments, which minimum limits may be increased if recommended by Landlord's consultants or other insurance professionals; (ii) contractual liability insurance covering all contractual indemnities by Tenant contained in this Lease; (iii) business auto liability insurance for ownership, use or maintenance of any automobile with a combined single limit insurance with limits of not less than \$500,000 for each accident and \$500,000 for each employee for death or bodily injury that could be asserted against Landlord, Tenant or the Premises; (iv) worker's compensation insurance, if required by law, in statutory amounts and limits covering all persons employed in connection with any work done in, on or about the Premises for claims for death or bodily injury that could be asserted against Landlord, Tenant or the

Premises; (v) business income and extra expense insurance with limits at least one hundred percent (100%) of Tenant's gross revenue for a twelve (12) month period. Any policy proceeds from such insurance shall be held in trust by Tenant for the repair, reconstruction, restoration or replacement of the property damaged or destroyed, unless this Lease shall cease and terminate under the provisions of Article 12.

(b) All policies of insurance provided for in Section 10.4(a) shall be issued in form acceptable to Landlord by insurance companies with general policyholder's rating of not less than A and a financial rating of Class X as rated in the most currently available "Best's Insurance Reports" and qualified to do business in the state in which the Premises is located. Each such policy shall be issued in the names of Landlord and Tenant. Said policies shall be for the mutual and joint benefit and protection of Landlord and Tenant and executed copies of each such policy of insurance or a certificate thereof shall be delivered to Landlord on the date of Landlord's delivery of possession of the Premises to Tenant and thereafter within thirty (30) days prior to the expiration of each such policy. As often as any such policy shall expire or terminate, renewal or additional policies shall be procured and maintained by Tenant in like manner and to like extent. All such policies of insurance shall contain a provision that the company writing said policy will give Landlord at least thirty (30) days' notice in writing in advance of any cancellation, or lapse, or the effective date of any reduction in the amounts of any such insurance policies. All such public liability, property damage and other casualty policies shall be written as primary policies which do not contribute to any policies which may be carried by Landlord. All such public liability and property damages policies shall contain a provision that Landlord, although named as an insured, shall nevertheless be entitled to recover under said policies for any loss occasioned to Landlord and the Landlord Parties by reason of Tenant's acts or omissions. Any insurance provided for in Section 10.4(a) may be effected by a policy of blanket insurance, covering additional items or locations or insured; provided, however, that (i) Landlord shall be named as an additional insured thereunder as its interest may appear; (ii) the coverage afforded Landlord will not be reduced or diminished by reason of the use of such blanket policy of insurance; (iii) any such property damage policy or policies shall specify therein (or Tenant shall furnish Landlord with a written statement from the insurers under such policy specifying) the amount of the total insurance allocated to the "Tenant Improvements and Property" more specifically detailed in Section 10.4(a); and (iv) the requirements set forth herein are otherwise satisfied. Tenant's failure to comply with the foregoing requirements shall constitute an Event of Default hereunder.

(c) Tenant agrees to permit Landlord at all reasonable times and upon written notice to inspect the policies of insurance of Tenant covering risks upon the Premises for which policies or copies thereof are not delivered to Landlord.

10.5 LANDLORD'S INSURANCE.

(a) Landlord shall, as part of the Common Area Costs, at all times during the Term, maintain in effect a policy or policies of insurance covering the Common Areas (excluding Tenant improvements and property required to be insured by Tenant pursuant to Section 10.4(a)) in an amount not less than the full replacement cost (exclusive of the cost of excavations, foundations and footings), providing protection against perils included within standard forms of fire and extended coverage insurance policies, together with insurance against sprinkler damage, vandalism, and malicious mischief, and such other risks as Landlord may from time to time determine and with any such deductibles as Landlord may from time to time determine. At Landlord's expense, Landlord will throughout the Term, as part of operating costs for the Shopping Center, maintain or cause to be maintained, for its benefit and the benefit of its mortgagee and managing agent, commercial general public liability insurance against claims for personal injury, death or property damage occurring upon, in or about the Shopping Center or the Common Areas and in such amounts as Landlord deems to be reasonable.

(b) Any insurance provided for in Sections 10.5(a) or (b) may be effected by a policy or policies of blanket insurance, covering additional items or locations or insured, provided that the requirements of Section 10.5(a) are otherwise satisfied. In addition, at Landlord's option, Landlord may elect to self-insure all or any part of such required insurance coverage. Landlord may, but shall not be obligated to carry any other form of insurance as Landlord or the mortgagees or ground lessors of Landlord may reasonably determine is advisable.

(c) Unless otherwise set forth herein, Tenant agrees to pay Tenant's Proportionate Share of premiums for the insurance provided for in this Article to Landlord at the times and in the manner provided for in Article 5 of this

Lease. Tenant shall have no rights in any policy or policies maintained by Landlord and shall not, by reason of payment by Tenant of its Proportionate Share of the premium for such insurance be entitled to be a named insured thereunder.

10.6 COMPLIANCE WITH INSURANCE AND GOVERNMENTAL REQUIREMENTS. Without limiting the generality of Section 8.5(f), Tenant agrees at its sole cost and expense, to make reasonable efforts to comply with all reasonable recommendations and requirements with respect to the Premises, or its use or occupancy, of the insurance underwriters and any similar public or private body, and any governmental authority having jurisdiction over insurance rates with respect to the use or occupancy of the Shopping Center, with regards to the installation of fire extinguishers or automatic dry chemical extinguishing systems, any changes, modifications or alterations in the sprinkler system or additional sprinkler heads or the location of partitions, trade fixtures or other contents of the Premises.

10.7 LIMIT OF LANDLORD'S RESPONSIBILITY. Except to the extent such matter is not covered by the insurance required to be maintained by Tenant under this Lease and is attributable to the fault, negligence or willful misconduct of Landlord, Landlord shall not, without limiting the generality of Section 10.1 hereof, be responsible or liable to Tenant or the Tenant Parties for any loss or damage that may be occasioned by or through the acts or omissions of persons occupying space in any other part of the Shopping Center, or for any loss or damage resulting to the Tenant or its property from bursting, stoppage or leaking of water, gas, sewer or steam pipes or for any damage caused by water leakage from any part of the Premises or from the pipes, appliances or plumbing works or from the roof, street or subsurface or from any other places or by dampness or by any other cause of whatsoever nature, or loss of property within the Premises from any cause whatsoever or any damage caused by other tenants or persons in the Premises, occupants of adjacent property of the Shopping Center, or the public, or caused by construction of any private, public or quasi-public work. With respect to latent or patent defects in the Premises or in the Shopping Center to the extent not caused by Tenant's Work or Tenant's acts or omissions, Landlord's liability shall not extend beyond one (1) year from the date of substantial completion of the construction of the Premises, whether or not such defects are discovered within such one (1) year period. Landlord shall in no event be liable for any consequential damages or loss of business or profits and Tenant hereby waives any and all claims for any such damage. All property of Tenant kept or stored in the Premises shall be so kept or stored at the sole risk of Tenant and Tenant shall hold Landlord harmless from any claims arising out of damage to the same, including subrogation claims by Tenant's insurance carriers, unless such damage shall be caused by the fault, negligence or willful misconduct of Landlord and is not covered by the insurance required to be maintained by Tenant under this Lease.

ARTICLE 11. MAINTENANCE, REPAIRS AND ALTERATIONS

11.1 LANDLORD'S DUTY TO MAINTAIN.

(a) Landlord will, as part of the Common Area Costs, maintain and repair the roof, bearing walls and foundations (excluding outer floor and floor coverings, walls installed at the request of Tenant, doors, windows and glass) in good order, first-class condition and repair, ordinary wear and tear excepted. Notwithstanding the foregoing provisions of this Section, Landlord shall not in any way be liable to Tenant on account of its failure to make repairs that Landlord does not know about or upon reasonable investigation could not have discovered. If Landlord is required due to the business carried on by Tenant, to make structural repairs or replacements by reason of the application of laws, ordinances or other regulations of any governmental body, or by reason of any act, omission or default of Tenant or those for whom Tenant is legally responsible or have been caused to any of the items Tenant is required to insure pursuant to Article 10, then subject to Sections 11.4 and 11.5, Tenant will be liable for the total cost of those repairs or replacements.

(b) If the Shopping Center, or any part of it, including, without limitation, the Common Areas or any equipment, machinery, facilities or improvements, the roof or the outside walls of the Shopping Center or any other structural portions require repair or become damaged or destroyed through the negligence, carelessness or misuse by Tenant or those for whom it is legally responsible, or by those parties in any way stopping up or damaging the heating apparatus, water pipes, drainage pipes or other equipment or facilities, then subject to Sections 11.4 and 11.5, the cost of the resulting repairs, replacements or alterations will be paid by Tenant to Landlord immediately

upon presentation of an invoice.

11.2 LANDLORD'S REPAIR OF PREMISES. Landlord shall be under no obligation to make any repairs, replacements, reconstruction, alterations or improvements to or upon the Premises or the mechanical equipment exclusively serving the Premises except as expressly provided for herein.

11.3 LANDLORD'S RIGHT TO ENTRY AND USE. Landlord and its agents will have the right, upon reasonable advance notice, to enter the Premises during business hours (except in the event of an emergency when Landlord can enter at any time) to: (i) inspect the Premises or any part thereof for the existence of any Hazardous Substance and to conduct an environmental audit or any testing required to satisfy itself that Tenant's operation is being run in compliance with Environmental Law and regulations; (ii) show the Premises to prospective purchasers or mortgagees or, within the last six (6) months of the Term, tenants; and (iii) for purposes of performing Landlord's obligations under Section 11.1(a) or performing any of Tenant's obligations under Sections 11.4 and 11.5 that Tenant fails to perform within the cure period provided in Section 14.2, to inspect the Premises, or to make such repairs or alterations to the pipes, conduits, wiring, ducts, sprinkler systems and other installations in or beneath the Premises as may be necessary to properly serve another part of the Shopping Center. Except to the extent caused by the willful or negligent act or omission by Landlord or anyone for whom Landlord is legally responsible, Landlord will not be liable to Tenant for any loss or damage incurred as a result of such an entry. Landlord will, however, take reasonable steps in connection with such entry to minimize any disruption to Tenant's business or its use of Premises.

11.4 TENANT'S DUTY TO MAINTAIN. Tenant will, at its own cost and expense, maintain the Premises (except that part Landlord has agreed to maintain) in good and tenantable condition, and make all repairs to the Premises and every part thereof as needed, unless Landlord or Landlord's employees, agents or invitees cause the need for such repairs. Tenant's obligations under this Section shall include, but not be limited to, modifying, repairing and maintaining items as are required by any governmental agency having jurisdiction thereof (whether the same is ordinary or extraordinary, foreseen or unforeseen), interior walls and glass, and the interior portions of exterior walls, ceilings, utility meters, pipes and conduits within the Premises, and all utility meters, and all pipes and conduits outside the Premises between the Premises and the service meter, all fixtures, the electrical, lighting, wiring, plumbing fixtures and equipment, the HVAC systems (whether such HVAC equipment is located inside or outside the Premises), sprinkler equipment and other equipment within the Premises, the store fronts and all exterior glass, all of Tenant's signs, locks and closing devices, and all window sashes, casement or frames, doors and door frames; provided that Tenant shall make no adjustment, alteration or repair of any part of any sprinkler or sprinkler alarm system in or serving the Premises without Landlord's prior approval.

11.5 REPAIRS AND ALTERATIONS BY TENANT.

(a) Tenant will not make any repairs, alterations, replacements, decorations or improvements ("Alterations") to any part of the Premises without first obtaining Landlord's written approval, which will not be unreasonably withheld. Tenant will submit: (i) details of the proposed Alterations, including professionally prepared drawings and specifications; and (ii) evidence reasonably satisfactory to Landlord that Tenant has obtained, at its expense, all necessary consents, permits, licenses and inspections from all applicable governmental authorities. All Alterations will be performed: (i) at Tenant's expense; (ii) by competent workmen; (iii) in a good and workmanlike manner; (iv) in accordance with the drawings and specifications approved by Landlord, which approval will not be unreasonably withheld; and (v) subject to the reasonable regulations, controls and inspection of Landlord. If, however, the proposed Alterations or any of them affect the structure of the Shopping Center or any of the electrical, mechanical or other base building systems, then the Alterations (or the appropriate portion of them) will, at Landlord's option, be performed by Landlord, at Tenant's expense. Except in the case of emergencies, neither Tenant nor its employees, agents or any other Person acting under the direction or control of Tenant will be permitted on the roof of the Shopping Center for any purpose, including, without limitation, for the purpose of maintaining, repairing or replacing the heating, ventilating or air-conditioning equipment serving the Premises, without the express written approval of Landlord in each instance. Any Alterations made by Tenant without the prior consent of Landlord or not made in accordance with the drawings and specifications approved by Landlord will, if requested by Landlord, be promptly removed by Tenant at Tenant's expense.

(b) In the event that Tenant makes any alterations, Tenant agrees to carry "Builder's All Risk" insurance in a customary and reasonable amount approved by Landlord covering the construction of such Alterations.

(c) At the expiration or earlier termination of the Term, Tenant will peaceably surrender the Premises to Landlord in as good a condition as Tenant is required to maintain them throughout the Term.

11.6 REMOVAL AND RESTORATION BY TENANT.

(a) All leasehold improvements included in Tenant's Work and all Alterations made by Tenant, or made by Landlord or others on Tenant's behalf (other than Tenant's trade fixtures) will immediately upon installation become Landlord's property and will remain with the Premises at the end of the Term. Notwithstanding the foregoing, however, if at the time Landlord consents to the installation of any Alteration proposed by Tenant, Landlord requires as a condition to its consent that Tenant remove such Alteration at the end of the Term, then Tenant will, at the end of the Term, remove such Alteration at Tenant's expense and repair all damage caused by such removal. Tenant will also, at its expense at the end of the Term, remove all of its trade fixtures.

(b) Tenant will install and, during the Term, maintain in the Premises trade fixtures and furniture appropriate for Tenant's business. If Tenant is not in default, then it will have the right at the expiration of the Term to remove its trade fixtures provided that it makes good any damage to the Premises or the Shopping Center caused as a result of their installation or removal.

(c) If Tenant does not remove its trade fixtures at the end of the Term, the trade fixtures will, upon prior written notice to Tenant and if Tenant does not remove such trade fixtures within twenty (20) days after such notice, at Landlord's option, become the property of Landlord and may be removed from the Premises at Tenant's reasonable expense and sold or disposed of by Landlord in such manner as it deems advisable. Tenant hereby irrevocably constitutes Landlord as its attorney-in-fact to execute on Tenant's behalf any transfers or other documents, including those required under the Uniform Commercial Code, to give effect to the foregoing.

(d) For greater certainty, Tenant's trade fixtures exclude: (i) heating, ventilating, air conditions, electrical, plumbing and other similar systems, facilities and equipment, including washroom fixtures; (ii) floor coverings affixed to the floor of the Premises; (iii) light fixtures; (iv) internal stairways and doors, if any; (v) ceiling and sprinkler systems and equipment; and (vi) any fixtures, facilities equipment or installations which were in the Premises when they were delivered to Tenant or were installed by or at the expense of Landlord; all of which are deemed to be leasehold improvements.

(e) Tenant will, prior to the end of the Term, at its sole cost, remove from the Premises any Hazardous Substance which is or has been located, stored or incorporated in or on any part of the Premises. This provision will survive the expiration or earlier termination of the Lease.

11.7 HEATING AND AIR CONDITIONING; ELECTRICAL; USE OF SYSTEMS.

(a) Tenant covenants to heat and air-condition the Premises with the heating and air-conditioning equipment serving its space. Tenant agrees to pay its own heating and air conditioning bill every month. Landlord will enter into a maintenance contract with a licensed heating and air-conditioning contractor, the cost will form part of the Common Area Costs. Tenant will, subject to the provisions of the following sentence, be solely responsible for all repairs and replacements with regard to the heating and air-conditioning equipment on the Premises if the cause is due to Tenant's fault or negligence and Tenant's obligations pursuant to this sentence shall survive the term of this Lease. Notwithstanding the foregoing, Landlord retains the right at its option to elect to repair and/or replace the heating and air-conditioning unit(s) serving the Premises, and in such event, the costs and expenses incurred by Landlord will form part of operating costs. Landlord may at any time subsequently elect to have Tenant reassume sole responsibility for repair and replacement of such equipment.

(b) Tenant will not install or use any electrical or other equipment or electrical arrangement which may overload the electrical or other service facilities available unless it first obtains the prior written consent of Landlord, and if necessary, at its own expense, makes whatever changes are necessary to comply with the reasonable

requirements of Landlord, Landlord's insurance underwriters and all applicable governmental authorities.

(c) Tenant will not allow any refuse, garbage or other loose or objectionable material to accumulate in or about the Premises or any portion of the Shopping Center and will at all times keep the Premises in a clean condition. The plumbing fixtures will not be used for any other purpose than that for which they are constructed and no foreign substance of any kind will be thrown in the plumbing fixtures. Subject to Section 10.5, the expense of any breakage, stoppage or damage will be borne by Tenant if caused by Tenant or those for whom it is legally responsible.

11.8 NO LIENS PERMITTED; DISCHARGE. The Landlord's property shall not be subject to liens for work done or materials used on the Premises made at the request of, or on order of or to discharge an obligation of, Tenant. This paragraph shall be construed so as to prohibit, in accordance to the provision of Wyoming law, the interest of Landlord in the Premises or any part thereof from being subject to any lien for any improvements made by Tenant or any third-party on Tenant's behalf (except Landlord) to the Premises. If any lien or notice of lien on account of an alleged debt of Tenant or any notice of lien by a party engaged by Tenant or Tenant's contractor or materialmen to work on the Premises shall be filed against the Shopping Center or any part thereof, Tenant, within ten (10) days after notice of the filing thereof, will cause the same to be discharged of record by payment, deposit, bond, order of a court of competent jurisdiction or otherwise. If Tenant shall fail to cause such lien or notice of lien to be discharged and released of record within the period aforesaid, then, in addition to any other right or remedy, Landlord may discharge the same either by paying the amounts claimed to be due or by procuring the discharge of such lien by deposit or by bonding procedures. Any amount so paid by Landlord and all costs and expenses, including attorneys' fees and court costs, incurred by Landlord in connection therewith, and including interest at the Default Rate, shall constitute Additional Rent and shall be paid by Tenant to Landlord on demand. Nothing herein shall obligate Tenant to pay or discharge any lien created by Landlord. Tenant will indemnify and save Landlord harmless from and against any loss, claims, damages, costs, or expenses suffered by Landlord by reason of any repairs, installations or improvements made by Tenant.

ARTICLE 12. CASUALTY/RECONSTRUCTION

12.1. LANDLORD'S DUTY TO RECONSTRUCT. In the event the Shopping Center is damaged or destroyed by any of the risks against which Landlord has procured insurance, Landlord shall (subject to being able to obtain all necessary permits and approvals therefor), within one hundred twenty (120) days after such damage or destruction (unless Landlord terminates this Lease pursuant to Section 12.3), commence to repair, reconstruct and restore or replace the Shopping Center and prosecute the same diligently to completion. Unless the damage is caused by Landlord, in no event shall Landlord be liable for interruption to Tenant's business or for damage to or repair, reconstruction, restoration or replacement of any of those things which Tenant is required to insure pursuant to Section 10.4(a), nor shall Landlord be required to expend more for any repair, reconstruction, restoration or replacement of the Shopping Center pursuant to this Section than the amount of insurance proceeds paid to Landlord in connection therewith plus the amount of any applicable deduction.

12.2 TENANT'S DUTY TO RECONSTRUCT. If any item which Tenant is required to insure pursuant to Section 10.4(a) is damaged or destroyed by any of the risks referred to therein, Tenant shall, within one hundred twenty (120) days thereafter (unless Landlord terminates this Lease pursuant to Section 12.3), commence to repair, reconstruct and restore or replace said matters and prosecute the same diligently to completion such that Tenant shall reopen for business in the Premises within the same period of time that Tenant was required to open for business upon Landlord's initial delivery of possession of the Premises to Tenant.

12.3 LANDLORD'S RIGHT TO TERMINATE. Landlord shall have the option to terminate this Lease upon giving written notice to Tenant of exercise thereof within one hundred twenty (120) days after the Shopping Center is damaged or destroyed if:

- (a) no part of the Premises remains tenantable after damage or destruction thereof from any cause; or
- (b) the Shopping Center is damaged or destroyed as a result of a risk not covered or substantially covered (in Landlord's good faith discretion) by Landlord's insurance; or

(c) the damage or destruction of the Shopping Center occurs within the last twelve (12) months of the Term;
or

(d) fifty percent (50%) or more of the GLA in the Shopping Center immediately prior to the damage or destruction is render untenable thereby; or

(e) the holder of any mortgage, deed of trust or other lien requires the use of all or any part of Landlord's insurance proceeds in satisfaction of all or any part of the indebtedness secured by any such mortgage, deed of trust or other lien.

Unless terminated, this Lease shall continue in full force and effect, and Landlord and Tenant shall perform their respective obligations under Sections 12.1 and 12.2. Upon any termination of this Lease under any of the provisions of this Section, the rent shall be adjusted as of the date of such termination and the parties shall be released therefrom without further obligation to the other party coincident with the surrender of possession of the Premises to the Landlord, except for items which have theretofore accrued and are then unpaid and except for those items and provisions of this Lease which expressly survive the expiration or sooner termination of this Lease.

12.4 ABATEMENT OF RENT. If this Lease is not terminated by Landlord pursuant to Section 12.3 and if the Premises have been rendered wholly or partially untenable by such damage or destruction, then the rent and the Additional Rent payable by Tenant under this Lease during the period the Premises are untenable shall be abated in direct proportion to the percentage of the GLA in the Premises which is untenable.

12.5 TENANT'S RIGHT TO TERMINATE. This Lease sets forth the terms and conditions upon which this Lease may be terminated in the event of any damage or destruction. If Landlord fails to commence the restoration within one-hundred twenty (120) days after the casualty and such delay is not caused by Tenant (or any Tenant Parties) or any events described in Section 21.7, Tenant shall have the right to terminate this Lease by notice to Landlord given prior to Landlord's commencement of construction. In addition, Tenant shall have the right to terminate this Lease by giving written notice to Landlord of exercise thereof within one hundred twenty (120) days after the date the Shopping Center is damaged or destroyed if:

(a) all or a substantial part of the Premises remains untenable after damage or destruction thereof from any cause; or,

(b) the damage or destruction to the Shopping Center occurs within the last twelve (12) months of the Term.

ARTICLE 13. ASSIGNMENT AND SUBLETTING

13.1 RESTRICTIONS ON ASSIGNMENT. The terms of this Lease, including the provisions relating to rent and use, have been negotiated by Landlord and Tenant on the assumption that Tenant will be the occupant of the Premises for the full Term. The parties have therefore agreed that Tenant shall have no right to transfer, assign, sublet, enter into license or concession agreements, or mortgage or hypothecate this Lease or the Tenant's interest in the Premises or any part thereof without Landlord's consent. Any attempted transfer, assignment, subletting, license or concession agreement, or hypothecation shall be void and confer no rights upon any third person and shall be a violation of this Section. Any transfer of this Lease from Tenant by merger, consolidation, liquidation or otherwise by operation of law, including but not limited to, an assignment for the benefit of creditors, shall be included in the term "assignment" for the purposes of this Lease and shall be a violation of this Section. Landlord may deny its consent to assignment without cause or justification and may impose such conditions upon the granting of its contents as it may deem appropriate, including, without limitation, requiring the assignee to agree to new or different terms.

13.2 CHANGE OF OWNERSHIP. If Tenant or any Guarantor is a corporation, unincorporated association or partnership, a transfer, assignment or hypothecation of any stock or interest in such corporation, association or partnership by any stockholder or partner so as to result in a change in the control thereof by the person, persons or

entities owning a majority interest therein as of the date of this Lease, shall be deemed to be an assignment of this Lease. This provision shall not be applicable to Tenant or to any Guarantor if it is a corporation whose voting stock is listed on a national securities exchange (as defined in the Securities Exchange Act of 1934, as amended) or is traded in any recognized over-the-counter market.

13.3 REQUIREMENT FOR ASSIGNMENT. In the event that Tenant proposes any transfer of this Lease or transfer of leasehold interest, Tenant shall notify Landlord in writing by certified mail at least sixty (60) days before the date on which the transfer is to be effective, and, included with such notice, furnish Landlord with: (i) the name and address of the entity receiving such transfer (the "Transferee"); (ii) a detailed description of the business of the Transferee; (iii) audited financial statements of the Transferee; (iv) all written agreements governing the transfer; (v) any information reasonably requested by the Landlord with respect to the transfer and the Transferee; and (vi) if such assignment is approved, a fee of five hundred (\$500) to compensate Landlord for legal fees, costs of administration, and other expenses to be incurred in connection with the review and processing of such documentation (whether or not such transfer is consummated). Landlord shall respond to Tenant's request for approval or disapproval of the transfer within thirty (30) days after Landlord receives the request and documents and information required above.

(a) In determining whether or not to grant its consent to Tenant's sublet or assignment request, Landlord may consider any reasonable factor. Landlord and Tenant agree that failure to satisfy any one of the following factors, or any other reasonable factor, will be reasonable grounds for denying Tenant's request:

(i) financial strength of the proposed subtenant/assignee, as evidenced by audited financial statements certified by an independent certified public accountant, must be at least equal to that of the existing Tenant as of the date hereof;

(ii) use of the Premises by the proposed subtenant/assignee (A) will not violate or create any potential violation of any laws; (B) will not violate any agreement affecting the Premises, Landlord or the Shopping Center, including without limitation, any so-called exclusive agreements; (C) will complement the tenant mix at the Shopping Center; (D) will otherwise be consistent with uses being conducted by reputable and creditworthy tenants leasing similar space in similar first class shopping centers in the metropolitan area in which the Shopping Center is located; and (E) will not constitute a nuisance or disturb or endanger other tenants of the Shopping Center or interfere with their use of their respective premises.

(iii) there must be no existing and uncured event of default by the existing Tenant;

(iv) the proposed subtenant/assignee must not be a party with whom Landlord is currently negotiating for space in the Shopping Center or an existing tenant of the Shopping Center;

(v) managerial and operational skills of the proposed subtenant/assignee must be at least equal to those of the existing Tenant.

(b) No transfer will release Tenant of Tenant's obligations under this Lease or alter the primary liability of Tenant to pay the rent and to perform all other obligations to be performed by Tenant hereunder. Consent by Landlord to one transfer will not be deemed consent to any subsequent Transfer. In the event of default by any Transferee of Tenant or any successor Tenant in the performance of any of the terms hereof, Landlord may proceed directly against Tenant without the necessity of exhausting remedies against such Transferee or successor.

13.4 CONSIDERATION PAID BY SUBLEASOR OR ASSIGNEE. In the event of any assignment or subletting, it is understood and agreed that all rentals paid to Tenant by an assignee or sublessee shall be received by Tenant in trust for Landlord, to be forwarded immediately to Landlord (to be applied as a credit and offset of Tenant's rent obligations.)

13.5 TRANSFER BY LANDLORD. Tenant acknowledges that Landlord which executed this Lease and any subsequent owner of the Shopping Center remains liable, subject to Section 21.19, for the performance of Landlord's obligations only during the period of its ownership of the Shopping Center. If there is a sale, lease or other disposition by Landlord of the Shopping Center or any part of them containing the Premises, or an assignment by

Landlord of the Lease or the interest of Landlord hereunder, then Landlord will, thereupon and without further agreement, be relieved of all further liability with respect to its covenants and obligations.

ARTICLE 14. DEFAULT AND REMEDIES

14.1 GENERAL. All rights and remedies of Landlord and Tenant enumerated in the Lease are cumulative and are not intended to be exclusive of any other remedies or means of redress at law or in equity to which either party may be lawfully entitled in case of any breach or threatened breach by the other party of any provision of the Lease. The failure of either party to insist in any one or more cases upon the strict performance of any of the covenants of the Lease or to exercise any option herein contained will not be construed as a waiver or relinquishment for the future of such covenant or option. A receipt by Landlord of rent with knowledge of the breach of any covenant hereof (other than breach of the obligation to pay the portion of such rent paid) will not be deemed a waiver of such breach, and no waiver by either party of any provisions of the Lease will be deemed to have been made unless expressed in writing and signed by such party.

14.2 EVENTS OF DEFAULT BY TENANT. This Lease is made upon the condition that Tenant shall punctually and faithfully perform all of the covenants, conditions and agreements by it to be performed. The following shall each be deemed to be an event of default (each of which is sometimes referred to as an "Event of Default") in this Lease:

(a) any part of the rent required to be paid by Tenant under this Lease shall at any time be unpaid for ten (10) days after written notice that any such rent is due;

(b) Tenant fails in the observance or performance of any of its other covenants, agreements or conditions provided for in this Lease, and said failure shall continue for a period of thirty (30) days after written notice thereof from Landlord to Tenant (unless such failure cannot reasonably be cured within thirty (30) days and Tenant shall have commenced to cure said failure within said thirty (30) days and continues diligently to pursue the curing of the same, which cure shall occur no later than sixty (60) days from the date of such notice from Landlord); provided, however, that Landlord shall be obligated to provide Tenant such written notice of default or failure only a maximum of two (2) times during any calendar year, and in the event of two (2) such defaults by Tenant during any calendar year, the next default shall be an automatic default hereunder without any further obligations on the part of Landlord to provide notice thereof;

(c) Tenant fails, after the date on which it is required by this Lease to open the Premises for business with the public, to be open for business as required by this Lease, or vacates or abandons the Premises;

(d) the estate created in Tenant or any Guarantor hereof is taken in execution or by other process of law, or all or a substantial part of the assets of Tenant or any Guarantor hereof is placed in the hands of a liquidator, receiver or trustee (and such receivership or trusteeship or liquidation continues for a period of thirty (30) days), or Tenant or any such Guarantor makes an assignment for the benefit of creditors, or admits in writing that it cannot meet its obligations as they become due, or is adjudicated a bankrupt, or Tenant or any such Guarantor institutes any proceedings under any federal or state insolvency or bankruptcy law as the same now exists or under any amendment thereof which may hereafter be enacted, or under any other act relating to the subject of bankruptcy wherein the Tenant or any such Guarantor seeks to be adjudicated as bankrupt, or to be discharged of its debts, or to effect a plan of liquidation, composition or reorganization, or should any involuntary proceedings be filed against Tenant or any such Guarantor under any such insolvency or bankruptcy law (and such proceeding not be removed within ninety (90) days thereafter). If any insolvency proceedings, such as those referred to in this Section 14.2(d), are instituted against Tenant, the Premises shall not become an asset in any such proceedings;

(e) Unless otherwise provided herein, Tenant assigns or otherwise transfers this Lease or subleases the Premises without prior written consent of Landlord;

(f) Tenant does or permits to be done anything which creates a lien upon the Premises; or

(g) any material representation or warranty made by Tenant in this Lease or any other document

delivered in connection with the execution and delivery of this Lease or pursuant to this Lease proves to be incorrect in any material respect.

14.3 LANDLORD'S REMEDIES. If any Event of Default occurs, then and in such case Landlord may treat the occurrence of such Event as a breach of this Lease and, in addition to any and all other rights or remedies of Landlord in this Lease or by law or in equity provided (including, without limitation, the rights and remedies provided under Wyoming law, it shall be, at the option of Landlord, without further notice or demand to Tenant or any other person, the right of Landlord to:

(a) declare the Term ended and to enter the Premises and take possession thereof and remove all persons therefrom, and Tenant shall have no further claim thereon or thereunder;

(b) bring suit for the collection of rent as it accrues pursuant to the terms of this Lease and damages without entering into possession of the Premises or canceling this Lease;

(c) retake possession of the Premises from Tenant by summary proceedings or otherwise, either with or without terminating this Lease (at Landlord's election), and to sue Tenant for an amount equal to the remaining rent to become due during the Term (or any extension period then in effect) less the fair rental value of the Premises over the remaining term (such rental value to be reduced by the actual or estimated costs of reletting and alteration, leasing commissions or other costs of Landlord in connection therewith). Alternatively, Landlord may, after such retaking of possession, relet the Premises or any portion thereof. Tenant shall pay to Landlord all monthly deficits in rent after any such re-entry in monthly installments as the amounts of such deficits from time to time are ascertained. Such deficiency shall be calculated and paid monthly; Tenant shall have no right to any excess. Tenant shall also pay to Landlord any costs and expenses, including, but not limited to, reasonable brokerage commissions and reasonable attorneys' fees, incurred by Landlord in such reletting or in making such alterations and repairs not covered by the rental received from such reletting. In the event of an entry or taking possession of the Premises as aforesaid, Landlord shall have the right, but not the obligation, to remove therefrom all or any part of the personal property located therein and may place the same in storage at a public warehouse at the expense and risk of the owner or owners thereof.

14.4 ATTORNEYS' FEES AND COSTS. In the event that any action, suit or other proceeding is initiated concerning or arising out of this Lease, the prevailing party shall recover all of such party's costs and attorneys' fees incurred in each and every action, suit or other proceeding, including any and all appeals or petitions therefrom from the non-prevailing party. As used herein, "attorneys' fees" shall mean the reasonable, actual cost of any legal services actually rendered in connection with the matters involved, calculated on the basis of the usual fee charged by the attorney performing such services.

14.5 RENT PAYABLE BY TENANT. For all purposes of Article 14, in determining the rent which would be payable by Tenant hereunder subsequent to default, rent for each Lease Year of the unexpired Term shall be deemed to be the amount of rent payable by Tenant during the twelve (12) calendar months immediately preceding the Event of Default.

14.6 TENANT'S PROPERTY TO REMAIN. If there is an Event of Default, all of Tenant's fixtures, furniture, equipment, improvements, additions, alterations, and other personal property shall remain on the Premises and, in that event and continuing during the length of said default, Landlord shall have the right to take the exclusive possession of same and to use same, without cost, until all defaults are cured or, at its option, at any time during the Term to require Tenant to forthwith remove same.

14.7 COSTS UPON DEFAULT AND LITIGATION. Tenant shall pay to Landlord and its mortgagees as additional rent all the expenses incurred by Landlord or its mortgagees in connection with any default by Tenant hereunder or the exercise of any remedy by reason of any default by Tenant hereunder, including reasonable attorneys' fees and expenses.

ARTICLE 15. LIABILITY OF LANDLORD

15.1 LANDLORD'S DEFAULT. Except as otherwise provided in this Lease, Landlord shall be in default under this Lease if Landlord fails to perform any of its obligations hereunder and said failure continues for a period of thirty (30) days after written notice thereof from Tenant to Landlord (unless such failure cannot reasonably be cured within thirty (30) days and Landlord shall have commenced to cure said failure within thirty (30) days and continues diligently to pursue the curing of the same). If Landlord defaults under this Lease and if, as a consequence of such default, Tenant shall recover a money judgment against Landlord, such judgment shall be satisfied only out of the proceeds of sale received upon execution of such judgment against the right, title and interest of Landlord in the Shopping Center as the same may then be constituted and encumbered, and Landlord shall not be liable for any deficiency. In no event shall Tenant have the right to levy execution against any property of Landlord other than an interest in the Shopping Center. Upon any such uncured default by Landlord, Tenant may exercise any of its rights provided in law or at equity; Notwithstanding anything contained in this Lease to the contrary, the obligations of Landlord under this Lease (including any actual or alleged breach or default by Landlord) do not constitute personal obligations of the individual partners, directors, officers, members or shareholders of Landlord or Landlord's partners, and Tenant shall not seek recourse against the individual partners, directors, officers, members or shareholders of Landlord or against Landlord's partners or any other persons or entities having any interest in Landlord, or any of their personal assets for satisfaction of any liability with respect to this Lease.

ARTICLE 16. SUBORDINATION AND ATTORNMEN

16.1 SUBORDINATION OF LEASE. This Lease is subordinate to the lien of all mortgages, deeds of trust, security instruments, ground leases, easement agreements and any covenants, conditions and restrictions (collectively, "Superior Interests") now or hereafter covering all or any part of the Shopping Center, and to all amendments, modifications, consolidations, renewals, replacements and extensions thereof. Tenant also agrees that, if any mortgagee elects to have this Lease prior to the lien of its mortgage and signifies such election in the instrument creating its lien, or by separate recorded instrument, this Lease shall be prior in dignity to such mortgage.

16.2 TENANT'S ATTORNMEN. In the event of any proceedings brought for the enforcement of any instrument of any Superior Interest holder (including but not limited to a mortgage or lease), Tenant shall, upon demand by the Superior Interest holder attorn to and recognize such Superior Interest holder as Landlord under this Lease. In the event of a sale or assignment of Landlord's interest under this Lease or in the Premises, Tenant shall attorn to and recognize such purchaser or assignee as Landlord under this Lease without further act by Landlord or such purchaser or assignee. Tenant hereby waives its rights under any current or future law which gives or purports to give Tenant any right to terminate or otherwise adversely affect this Lease and the obligations of Tenant hereunder in the event of any such foreclosure proceeding or sale.

16.3 INSTRUMENTS TO CARRY OUT INTENT. Tenant agrees that, in order to confirm the provisions of this Article, but in no way limiting the self-operative effect of said provisions, Tenant shall execute and deliver whatever instruments may be required for such purposes within ten (10) days following Landlord's written request. Should Tenant fail to sign and return any such instruments within said ten (10) day period, Tenant shall be in default hereunder without the benefit of any additional notice or cure periods specified in this Lease.

ARTICLE 17. ESTOPPEL CERTIFICATES

17.1 TENANT'S AGREEMENT TO DELIVER. Within twenty (20) days after request thereof from Landlord, Tenant agrees to execute and deliver to Landlord, or to such other addressee or addressees as Landlord may designate (and any such addressee may rely thereon), a statement in writing certifying (if true) that the Lease is in full force and effect and unmodified or describing any modifications; that Tenant has accepted the Premises; that Landlord is not in default in any provision of the Lease and has performed all of its obligations under the Lease arising prior to the date of the certificate; that there are no defenses or offsets against the enforcement of this Lease

or stating with particularity those claimed by Tenant; stating the date to which rent has been paid; and making such other true representations as may be reasonably requested by Landlord.

17.2 FAILURE OF TENANT TO GIVE ESTOPPEL. If Tenant fails to give the estoppel certificate required by Section 17.1 within the time permitted thereby and fails to object in writing specifying with particularity the manner in which the requested estoppel certificate is untrue, it shall be conclusively deemed that the matters set forth in the requested estoppel are true and correct as of the date of the request. Tenant shall indemnify, defend (with counsel reasonably approved by Landlord in writing) and hold Landlord harmless from and against any and all claims, judgments, suits, causes of action, damages, losses, liabilities and expenses (including attorney's fees and court costs) attributable to any failure by Tenant to timely deliver any such estoppel certificate to Landlord pursuant to Section 17.1 above.

ARTICLE 18. QUIET ENJOYMENT

ARTICLE 18.1 FAITHFUL PERFORMANCE. Upon payment by the Tenant of the rent herein provided for and upon the observance and performance of all of the agreements, covenants, terms and conditions on Tenant's part to be observed and performed, Tenant shall peaceably and quietly hold and enjoy the Premises for the Term without hindrance or interruption by Landlord or any other person or persons lawfully or equitably claiming by, through or under Landlord.

ARTICLE 19. SURRENDER AND HOLDING OVER

ARTICLE 19.1 DELIVERY AFTER TERM. Tenant shall deliver up and surrender to Landlord possession of the Premises upon the expiration or earlier termination of the Term, broom clean, free of debris, in good order, condition and state of repair (except as may be Landlord's obligation under this Lease and ordinary wear and tear), and shall deliver the keys at the office of Landlord in the Shopping Center or to Landlord at the address to which notices to Landlord are to be sent pursuant to Section 21.4. If not sooner terminated as herein provided, this Lease shall terminate at the end of the Term as provided for in Article 3 without the necessity of notice from either Landlord or Tenant to terminate the same. Tenant hereby waiving notice to vacate the Premises and agreeing that Landlord shall be entitled to the benefit of all provisions of law respecting the summary recovery of possession of premises from a tenant holding over.

ARTICLE 19.2 EFFECT OF HOLDING OVER; RENT. If Tenant or any party claiming under Tenant remains in possession of the Premises, or any part thereof, after any termination or expiration of this Lease without having signed a new lease or an extension of Term agreement, no tenancy or interest in the Premises shall result therefrom, but such holding over shall be an unlawful detainer and all such parties shall be subject to immediate eviction and removal, and Tenant shall upon demand pay to Landlord, a sum equal to all Additional Rent provided for in this Lease during any period which Tenant shall hold the Premises after the Term has expired, plus an amount computed at the rate of double the rent for such period. In addition, Tenant shall indemnify, protect, defend (by counsel approved in writing by Landlord) and hold Landlord harmless from and against any and all claims, judgments, suits, causes of action, damages, losses, liabilities and expenses (including attorney's fees and court costs) resulting from such failure to surrender, including, without limitation, any claim made by any succeeding tenant based thereon. The foregoing indemnity shall survive the expiration or earlier termination of this Lease. The foregoing provisions of this Section 19.2 are in addition to, and do not affect, Landlord's right of re-entry or any other rights of Landlord hereunder or otherwise provided by law or equity.

ARTICLE 20. CONDEMNATION

20.1 ALL OF PREMISES TAKEN. If the whole Premises shall be taken either permanently or temporarily by any right of eminent domain or conveyance in lieu thereof (each being hereinafter referred to as "condemnation"), this Lease shall terminate as of the day possession shall be taken by the condemning authority, and Tenant shall pay rent and perform all of its other obligations under this Lease up to that date with a proportionate refund by Landlord

of any rent that may have been paid in advance for a period subsequent to the date of taking.

20.2 LESS THAN ALL OF PREMISES TAKEN. If less than all but more than twenty percent (20%) of the Premises is taken by condemnation or if (regardless of the percentage of the Rentable Area in the Premises which is taken) the remainder of the Premises is divided in two or more units, then in either event Landlord and Tenant shall have the right to terminate this Lease upon notice in writing to the other party within ninety (90) days after possession is taken by such condemnation. If this Lease is so terminated, it shall terminate as of the day possession shall be taken by such condemning authority, and Tenant shall pay rent and perform all of its other obligations under this Lease up to that date with a proportionate refund by Landlord of any rent that may have been paid in advance for a period subsequent to the date of the taking. If this Lease is not so terminated, it shall terminate only with respect to the parts of the Premises so taken as of the day possession is taken by such authority, and Tenant shall pay rent up to that day with a proportionate refund by Landlord of any rent that may have been paid for a period subsequent to the date of the taking and, thereafter, the rent shall be based on the remaining Rentable Area of the Premises. Landlord agrees, at Landlord's cost and expense, as soon as reasonably possible, to restore the Premises on the land remaining to a complete unit of like quality and character as existed prior to such appropriation or taking; provided that Landlord shall not be required to expend more on such restoration than the condemnation award received by Landlord (less all expenses, costs, legal fees and court costs incurred by Landlord in connection with such award.)

20.3 SHOPPING CENTER TAKEN.

(a) If any part of the Shopping Center (including any easement appurtenant to Landlord's interest therein) is taken by condemnation so as to render, in Landlord's judgment, the remainder unsuitable (in Landlord's discretion) for use as a retail shopping center, Landlord shall have the right to terminate this Lease upon notice in writing to Tenant within one hundred twenty (120) days after possession is taken by such condemnation. If Landlord so terminates this Lease, it shall terminate as of the day possession is taken by the condemning authority, and Tenant shall pay rent and perform all of its obligations under this Lease up to that date with a proportionate refund by Landlord of any rent as may have been paid in advance for a period subsequent to such possession.

(b) If title to (i) twenty percent (20%) or more of the Shopping Center or (ii) twenty percent (20%) or more of the parking required to be maintained in the Shopping Center is so taken, and if Landlord within one (1) year after such taking has not substituted an equivalent number of parking spaces in a location reasonably accessible to the Shopping Center, then either party may terminate this Lease by notice to the other given within thirty (30) days after the taking or after the expiration of such one (1) year period, as the case may be.

20.4 OWNERSHIP OF AWARD. All damages for any condemnation of all or any part of the Shopping Center, including, but not limited to, all damages as compensation for diminution in value of the leasehold, reversion, and fee, shall belong to the Landlord without any deduction therefrom for any present or future estate of Tenant, and Tenant hereby assigns to Landlord all its right, title and interest to any such award. Although all damages in the event of any condemnation are to belong to the Landlord, Tenant may have the right to claim and recover from the condemning authority, but not from Landlord, such compensation as may be separately awarded or recoverable by Tenant in Tenant's own right on account of any and all damage to Tenant's business by reason of the condemnation and for or on account of any cost or loss which Tenant might incur in removing Tenant's merchandise, furniture, fixtures, leasehold improvements and equipment.

ARTICLE 21. MISCELLANEOUS

21.1 RULES AND REGULATIONS. The Rules and Regulations adopted and promulgated by Landlord from time to time including, without limitation, those set forth in Exhibit C, are made a part of the Lease as if they were embodied herein, and Tenant will comply with and observe them. Landlord reserves the right from time to time to amend or supplement the Rules and Regulations applicable to the Premises or the Shopping Center as in Landlord's judgment are from time to time needed for the safety, care, cleanliness and efficient operation of the Shopping Center. Notice of the Rules and Regulations and amendments and supplements, if any will be given to Tenant and Tenant will thereupon comply with and observe them, provided that they do not contradict any terms, covenants and conditions of the Lease.

21.2 INTERPRETATION. The captions appearing in this Lease are inserted only as a matter of convenience and in no way amplify, define, limit, construe or describe the scope or intent of such sections of the Lease.

21.3 RELATIONSHIP OF PARTIES. Nothing herein contained shall be construed as creating any relationship between the parties other than the relationship of Landlord and Tenant, nor cause either party to be responsible in any way for the acts, debts or obligations of the other.

21.4 NOTICES. Any notice, demand, request or other instrument which may be or is required to be given under the Lease (a "Notice") will be delivered in person or sent by registered mail, postage prepaid, and will be addressed: (a) if to Landlord to:

RGLM, Inc.
4620 Grandview Avenue
Cheyenne, WY 82009

or to such other person(s) or at such other address(es) as Landlord designates in written notice; and (b) if to Tenant, to the Premises or, at Landlord's option to Tenant's office at:

Wasabi Japanese Steakhouse INC
4620 Grandview Ave, Units 205, 206 & 207 MY2
Cheyenne, WY 82009
ATTN: Mingyang Zhu

A Notice is conclusively deemed to have been received on the day upon which it is delivered, if delivered in person; on the next business day after it is deposited for next business day delivery with a nationally recognized overnight courier service that obtains evidence of receipt; or five (5) business days following the date of mailing, if mailed postage prepaid, certified or registered mail, return receipt requested. Either party may give written notice of any change of its address and thereafter the new address is deemed to be the address of that party for the giving of notice.

21.5 SUCCESSORS. This Lease shall inure to the benefit of and be binding upon the Landlord, its successors and assigns, and shall be binding upon Tenant, its successors and assigns, and shall inure to the benefit of Tenant and only such assigns of Tenant to whom the assignment by Tenant has been made and consented to in accordance with the provisions of this Lease.

21.6 BROKER'S COMMISSION. Landlord has entered into an agreement with the real estate broker specified in Section 1.1(m) of the Lease as representing Landlord ("Landlord's Broker"), and Landlord shall pay any commissions or fees that are payable to Landlord's Broker with respect to this Lease in accordance with the provisions of a separate commission contract. Landlord shall have no further or separate obligation for payment of commissions or fees to any other real estate broker, finder or intermediary. Tenant represents that it has not had any dealings with any real estate broker, finder or intermediary with respect to this Lease, other than Landlord's Broker and the broker specified in Section 1.1(m) of the Lease as representing Tenant ("Tenant's Broker"). Any commissions or fees payable to Tenant's Broker with respect to this Lease shall be paid exclusively by Landlord's Broker. Each party represents and warrants to the other, that, to its knowledge, no other broker, agent or finder (a) negotiated or was instrumental in negotiating or consummating this Lease on its behalf and/or (b) is or might be entitled to a commission or compensation in connection with this Lease. Any broker, agent or finder of Tenant whom Tenant has failed to disclose herein shall be paid by Tenant. Tenant shall indemnify, defend (by counsel reasonably approved in writing by Landlord) and hold Landlord harmless from and against any and all claims, judgments, suits, causes of action, damages, losses, liabilities and expenses (including attorneys' fees and court costs) resulting from any breach by agent or finder undisclosed by Tenant herein. Landlord shall indemnify, defend (by counsel reasonably approved in writing by Tenant) and hold Tenant harmless from and against any and all claims, judgments, suits, causes of action, damages, losses, liabilities and expenses (including attorneys' fees and court costs) resulting from any breach by Landlord of the foregoing representation, including, without limitation, any claims that may be asserted against Tenant by any broker, agent or finder undisclosed by Landlord herein. The

foregoing indemnities shall survive the expiration or earlier termination of this Lease.

21.7 UNAVOIDABLE DELAYS. In the event that either party shall be delayed or hindered in or prevented from the performance of any act required hereunder by reason of strikes, lockouts, labor troubles, inability to procure labor or materials, failure of power, restrictive governmental laws or regulations, riots, insurrection, war, act of God, fire or other casualty or other reason of similar or dissimilar nature beyond the reasonable control of the party delayed in performing work or doing acts required under the terms of this Lease, then performance of such act shall be excused for the period of delay and the period for the performance of any such act shall be extended for a period equivalent to the period of such delay. The provisions of this Section shall not operate to excuse Tenant from prompt payment of Rent or any other payments required by the terms of this Lease and shall not extend the Term. Delays or failures to perform resulting from lack of funds shall not be deemed delays beyond the reasonable control of a party.

21.8 ENTIRE AGREEMENT. There are no oral agreements between the parties hereto affecting this Lease, and this Lease supersedes and cancels any and all previous negotiations, arrangements, letters of intent, lease proposals, brochures, agreements, representations, promises, warranties and understandings between the parties hereto or displayed by Landlord to Tenant with respect to the subject matter thereof. This Lease, including the Exhibits and any addenda, sets forth all the covenants, promises, agreements, conditions and understandings between Landlord and Tenant concerning the Premises and the Shopping Center. No alteration, amendment, change or addition to this Lease shall be binding upon Landlord or Tenant unless reduced in writing, signed by them and mutually delivered between them.

21.9 GOVERNING LAW. Irrespective of the place of execution or performance, the Lease will be governed by and construed in accordance with the laws of Wyoming. If any provision of the Lease or the application thereof to any person or circumstance will, for any reason and to any extent, be invalid or unenforceable, the remainder of the Lease and the application of that provision to other persons or circumstances will not be affected but rather will be enforced to the extent permitted by law. The Lease will be construed without regard to any presumption or other rule requiring construction against the party causing the Lease to be drafted.

21.10 WAIVER.

(a) The waiver by Landlord of any term, covenant, agreement or condition herein shall not be deemed to be a waiver of any subsequent breach of the same or any other term, covenant, agreement or condition. The acceptance of rent hereunder by Landlord shall not be deemed to be a waiver of any prior default by Tenant, other than the failure of Tenant to pay the particular rent so accepted, regardless of Landlord's knowledge of such prior default at the time of acceptance of such rent. No covenant, term, agreement or condition of this Lease shall be deemed to have been waived by Landlord unless such waiver be in writing signed by Landlord.

(b) No waiver of any covenant, term, agreement or condition of this Lease or legal right or remedy shall be implied by the failure of Landlord to declare a forfeiture, or for any other reason. No waiver by Landlord in respect to one or more tenants or occupants of the Shopping Center shall constitute a waiver in favor of any other tenant. Landlord's consent to, or approval of, any act by Tenant requiring Landlord's consent or approval shall not be deemed to waive or render unnecessary Landlord's consent to or approval of any subsequent similar act by Tenant.

21.11 ACCORD AND SATISFACTION. No payment by Tenant or receipt by Landlord of a lesser amount than the rent herein stipulated shall be deemed to be other than on account of the earliest stipulated rent, nor shall any endorsement or statement on any check or any letter accompanying any such check or payment as rent be deemed an accord and satisfaction, and Landlord may accept such check or payment without prejudice to Landlord's right to recover the balance of such rent or pursue any other remedy provided for in this Lease or available at law or in equity.

21.12 LANDLORD'S SELF-HELP. In addition to Landlord's rights of self-help set forth elsewhere in this Lease, if Tenant at any time fails to perform any of its obligations under this Lease in a manner reasonably

satisfactory to Landlord, Landlord shall have the right, but not the obligation, upon giving Tenant at least ten (10) days' prior written notice of its election to do so (in the event of an emergency, no prior notice shall be required), to perform such obligations on behalf of and for the account of Tenant and to take all such action necessary to perform such obligations without liability to Tenant for any loss or damage which may result to Tenant's stock or business by reason of such repairs. In such event, Landlord's costs and expenses incurred therein shall be paid for by Tenant as Additional Rent, forthwith upon demand therefor, with interest thereon from the date Landlord performs such work at the Default Rate. The performance by Landlord of any such obligation shall not constitute a release of waiver of Tenant therefrom.

21.13 RECORDING OF LEASE. Tenant will not record the Lease. Tenant will, at the request of Landlord, execute, acknowledge and deliver, at any time after the date of the Lease, a short form lease or Memorandum of Lease prepared by Landlord but the provisions of the Lease will control the rights and obligations of the parties.

21.14 JOINT AND SEVERAL LIABILITY. If two or more individuals, corporations, partnerships or other business associations (or any combination of two or more thereof) shall sign this Lease as Tenant, the liability of each of them shall be joint and several. In like manner, if the Tenant named in this Lease shall be a partnership or other business association, the members of which are, by virtue of statute or general law, subject to personal liability, the liability of each such member shall be joint and several.

21.15 WAIVER OF JURY TRIAL AND RIGHT TO COUNTERCLAIM. Landlord and Tenant will and hereby do waive trial by jury in any action, proceeding or counterclaim brought by either of the parties hereto against the other on any matters arising out of or in any way connected with the Lease, the relationship of Landlord and Tenant, Tenant's use or occupancy of the Premises, or claim of injury or damage.

21.16 TIME OF THE ESSENCE. Time is of the essence of each and every obligation under this Lease.

21.17 RENTAL ADJUSTMENT. Landlord's failure or delay in notifying Tenant of any rental adjustments, including, without limitation, adjustments to rent and readjustments on account of estimated Additional Rent, will not constitute a waiver of Landlord's rights nor affect Tenant's obligations to pay such adjusted amounts.

21.18 FINANCIAL INFORMATION. Tenant will, upon request, from time to time, provide Landlord with Tenant's or any Guarantor's most recent financial statements or such other information concerning their financial standing and corporate organization as Landlord or its mortgagee, both acting reasonably, may require.

21.20 EXECUTION OF LEASE. The submission of this Lease for examination does not constitute a reservation of or option for the Premises or any other space within the Shopping Center and shall vest no right to either party. This Lease shall become effective as a Lease only upon execution and legal delivery thereof by the parties, together with the execution and delivery to Landlord of a Guaranty in the form annexed hereto by the Guarantor(s), if any, named in Section 1.1(k) and the delivery by Tenant to Landlord of any documents and monies (if any) required to be delivered by Tenant to Landlord upon Tenant's execution and delivery of this Lease to Landlord.

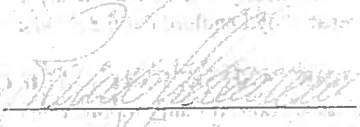
21.21 ADDITIONAL PROVISIONS. If the parties have agreed on any additional provisions regarding the Lease, the same are shown on Exhibits A, B, C, D, and E and Appendix A attached hereto.

21.19 LIMITATION ON LANDLORD'S LIABILITY. Tenant agrees to look solely to Landlord's interest in the Shopping Center for the recovery of any judgment from Landlord, it being agreed that Landlord, and if Landlord is a partnership, its partners whether general or limited, and if Landlord is a corporation, its directors, officers or shareholders, and if Landlord is a limited liability company, its managers, will never be personally liable for any such judgment.

IN WITNESS WHEREOF, Landlord and Tenant have duly executed this Lease as of the day and year first above written.

LANDLORD:

RGLM, Inc.
a Wyoming corporation

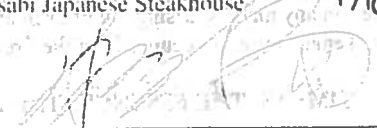
By: 

Its: _____

TENANT:

Wasabi Japanese Steakhouse

RM
MYZ

By: 

Its: 01/27/2014

EXHIBIT A
(The Premises)

4620 Grandview Avenue, Cheyenne, WY 82009, aka Avanti Piazza

EXHIBIT B

Landlord's Work

Landlord will not participate in the construction costs for the Tenant Improvement for the operation as a restaurant.

Tenant's Work

Tenant is responsible for all construction costs relative to Tenant Improvements for the operation of a restaurant. All construction must be in accordance with the governance of the City of Cheyenne, County of Laramie, State of Wyoming with all work being performed by licensed professionals in their respective fields.

EXHIBIT C
Rules and Regulations

1. Landlord will enter into a contract with a reputable trash contractor for trash removal, which will form part of the operating costs. Tenant will dump all trash generated by Tenant's business in the Premises in the trash dumpster. Landlord may elect to have each Tenant share the use of one particular dumpster. Each Tenant agrees to dump their trash neatly into the dumpster, thus keeping the trash enclosure tidy with out trash on the ground. If any Tenant of premises does not abide by the foregoing such Tenant will be obligated to pay Landlord \$100 for each such contravention.
2. Tenant will be open at times consistent with the operation of a professional dental practice, to be determined at Tenant's sole discretion.
3. The hours for the lighting of display windows will be from dusk until 11:00 p.m. Tenants will be required to illuminate their fascia signage during such times as Landlord determines from time to time. Landlord retains the right at any time to centralize the switching and metering of all or a part of the Shopping Center signage to decentralize the system to individual metering and switching.
4. No person will use any roadway, sidewalk or walkway, except as a means of egress or ingress to any floor area and automobile parking areas within the Shopping Center, or adjacent to public streets. Such use will be in an orderly manner and in accordance with the directional or other signs or guides. Roadways will not be used at a speed in excess of 30 miles per hour and will not be used for parking or stopping except for the immediate loading or unloading of passengers. No sidewalk or walkway will be used for other than pedestrian travel.
5. No person will use any automobile parking areas except for the parking of motor vehicles during the period of time such person or the occupants of such vehicles are customers or business invitees of establishments within the Shopping Center. All motor vehicles will be parked in an orderly manner within the appointed lines defining the individual parking space.
6. No persons, without the prior written consent of Landlord will, in or on any part of the Common Area:
 - a. Vend, peddle or solicit orders for sale or distribution of any merchandise, device, service, periodical, book, pamphlet, or other matter whatsoever.
 - b. Exhibit any sign, placard, banner, notice or other written material.
 - c. Solicit signatures on any petition or for any other purpose, disseminate any information in connection therewith, or distribute any circular, booklet, handbill, placard or other material.
 - d. Solicit membership in any organization, group or association, or solicit contributions for any purpose which has no relationship to the Shopping Center.
 - e. Parade, rally, patrol, picket, demonstrate or engage in any conduct that might tend to interfere with or impede the use of any of the Common Areas by any customer, business invitee, employee or tenant of the Shopping Center, create a disturbance, attract attention, or harass, annoy, disparage or be detrimental to the interest of any of the retail establishments within the Shopping Center.
 - f. Use any portion of the Common Areas for any purpose when any of the establishments within the Shopping Center are open for business or employment.
 - g. Throw, discard or deposit any paper, glass or extraneous matter of any kind, except in designated receptacles, or create litter or hazards of any kind.

h. Deface, damage or demolish any sign, light standard or fixture, landscaping material, or other improvement within the Shopping Center or the property of customers, business invitees or employees situated within the Shopping Center.

8. Landlord will have the right to remove or exclude from or to restrain (or take legal action to do so) any unauthorized person from, or from coming upon, the Shopping Center or any portion thereof, and to prohibit, abate and recover damages arising from any unauthorized act, whether or not such act is in express violation of the rules and regulations set forth therein.

EXHIBIT D

Option to Renew

Tenant shall have the option to extend the Lease for a period of five (5) years after the Term of the Lease (the "Lease Extension"), on the following terms and conditions:

A. Tenant shall give notice to Landlord of Tenant's intent to extend the Lease in writing, no later than three (3) months before the end of the Term.

B. Tenant shall not have the right to exercise its option to extend if the Tenant is in default of any of the terms of the Lease. Further, if Tenant shall default after said right to extend has been exercised, but before the term of the Lease Extension commences, the Tenant's right to extend the Lease shall, at Landlord's option, be null and void.

C. If Tenant elects to extend the term of the Lease, the rent, without deduction of setoff, during the Lease Extension shall be payable in monthly installments as follows:

Sixth Year of Lease
Seventh Year of Lease
Eighth Year of Lease
Ninth Year of Lease
Tenth Year of Lease

Each such payment shall be due on the first (1st) day of each month throughout the Lease Extension.

EXHIBIT E

ABSOLUTE UNCONDITIONAL GUARANTY AGREEMENT

KNOW ALL MEN BY THESE PRESENCE: That,

THIS Absolute Unconditional Guaranty (the "Guaranty") is executed and delivered this 30th day of September, 2014 by Wasabi Japanese Steakhouse AND Mingyang Zhu (herein collectively, "Guarantor") in favor of RGLM, Inc., a Wyoming corporation, ("Landlord").

RECITALS:

- A. Tenant and Landlord are party to that certain Lease Agreement dated September 30, 2014, (the "Agreement").
- B. In order to induce Landlord to enter into the Agreement, Guarantor agreed to execute and deliver to Landlord this Guaranty.

C. Guarantor acknowledges that Landlord would not have entered into the Agreement without the execution and delivery by Guarantor of this Guaranty.

NOW THEREFORE, in consideration of the Premises and other good and valuable consideration, the receipt and sufficiency of which are hereby acknowledged by Guarantor, Guarantor hereby agrees in favor of Landlord (and Landlord's successors and assigns) as follows:

1. Guarantor absolutely, unconditionally and irrevocably guarantees the prompt and complete payment and performance when due, whether by acceleration or otherwise, of all obligations, liabilities and covenants, whether now in existence or hereafter arising, of Tenant to Landlord, and arising under the Agreement, including without limitation all amounts due to the Landlord as rent or otherwise under the Agreement (the "Obligations"). The Guarantor hereby agrees to pay and/or perform punctually, upon written demand by Landlord, each such Obligation which is not paid or performed as and when due and payable by the Tenant, in like manner as such amount is due from the Tenant. For purposes hereof, the Obligations shall be performed and/or due and payable under the terms of the Agreement notwithstanding the fact that the collection or enforcement thereof as against the Tenant may be stayed or enjoined under Title 11 of the United States Code or similar applicable law. This Guaranty is one of payment and not of collection.
2. The Guarantor's obligations under this Guaranty are absolute and unconditional and shall not be affected by the genuineness, validity, regularity or enforceability of the Obligations or the Agreement, or by any other circumstance relating to the Obligations or the Agreement which might otherwise constitute a legal or equitable discharge of or defense of a guarantor or surety. Guarantor hereby irrevocably waives any and all suretyship defenses, defenses that could be asserted by Tenant (except payment) and all other defenses that would otherwise be available to Guarantor. All payments by the Guarantor pursuant to this Guaranty shall be made without setoff. The Landlord shall not be obligated to file any claim relating to the Obligations in the Guaranty shall be made without setoff. The Landlord shall not be obligated to file any claim relating to the Obligations in the event that the Tenant becomes subject to a bankruptcy, reorganization or similar proceeding, and the failure of the Landlord so to file shall not affect the Guarantor's obligation under this Guaranty. The Guarantor irrevocably waives any right to require the Landlord to pursue any other remedy in the Landlord's power whatsoever, whether against the Tenant or any other obligor principally or secondarily obligated with respect to the Obligations. The Guarantor irrevocably waives any defense arising by reason of any disability, bankruptcy, reorganization or similar proceeding involving the Tenant. In the event that any payment in respect of any Obligations is rescinded or must otherwise be returned for any reason whatsoever, the Guarantor

shall remain liable under this Guaranty in respect of such Obligations as if such payment had not been made.

3. The Guarantor agrees that the Landlord may at any time and from time to time, either before or after the maturity thereof, without notice to or further consent of the Guarantor, extend the time of payment of, or performance of, or renew, any of the Obligations, and may also make any agreement with the Tenant or with any other party to or person liable on any of the Obligations, or interested therein, for the extension, renewal, payment, compromise, waiver, discharge or release thereof, in whole or in part or for any amendment or modification of the terms thereof or of the Agreement or any other agreement between the Landlord and the Tenant or any such other party or person, without in any way impairing, releasing or affecting the liabilities of the Guarantor under this Guaranty.
4. The Guarantor will not exercise any rights which it may acquire by way of subrogation until all of the Obligations to Landlord shall have been indefeasibly paid in full, or performed in its entirety. Any amount paid to the Guarantor in violation of the preceding sentence shall be held in trust for the benefit of the Landlord and shall forthwith be paid to the Landlord to be credited and applied to the Obligations, whether matured or unmatured. Guarantor hereby subordinates any and all liabilities and indebtedness to Guarantor to the prior indefeasible payment in full of the Obligations.
5. This Guaranty shall remain in full force and effect and be binding upon the Guarantor, its successors and assigns until all of the Obligations have been satisfied in full and the Agreement shall have been terminated or fully performed. This Guaranty may not be modified, discharged or terminated orally or in any manner other than by an agreement in writing signed by Landlord and Guarantor. This is a continuing Guaranty relating to all Obligations, including any arising during any holdover term or arising under transactions renewing or extending the term of the Agreement, changing the terms of any Obligations, or creating new or additional Obligations after prior Obligations have in whole or in part been satisfied, regardless of any lapse of time. If any of the present or future Obligations are guaranteed by persons, partnerships, corporations or other entities in addition to the Guarantor, the death, release or discharge, in whole or in part, or the bankruptcy, liquidation or dissolution of one or more of them shall not discharge or affect the liabilities of the Guarantor under this Guaranty. The obligations of the Guarantor hereunder shall be additional to, and not in substitution for, any security or other guarantee or indemnity at any time existing in respect of Tenant's obligations, liabilities and covenants under the Agreement.
6. No failure on the part of the Landlord to exercise, and no delay in exercising, any right, remedy or power under this Guaranty shall operate as a waiver thereof, nor shall any single or partial exercise by the Landlord of any right, remedy or power under this Guaranty preclude any other or future exercise of any right, remedy or power under this Guaranty. Each and every right, remedy and power granted to the Landlord under this Guaranty or allowed it by law or by the Agreement or any other agreement shall be cumulative and not exclusive of any other, and may be exercised by the Landlord from time to time.
7. The Guarantor hereby waives notice of acceptance of this Guaranty and notice of any obligation or liability to which it may apply, and waives presentment, demand for payment, protest, notice of dishonor or non-payment of any such obligation or liability, suit or the taking of other action by Landlord against, and all other notices whatsoever to, the Tenant, the Guarantor or others.
8. Landlord may at any time and from time to time without notice to or consent of the Guarantor and without impairing or releasing the obligations of the Guarantor hereunder: (a) take or fail to take any action of any kind in respect of any security for any obligation, covenant or liability of the Tenant to Landlord; (b) exercise or refrain from exercising any rights against the Tenant or others; (c) compromise or subordinate any obligation or liability of the Tenant to Landlord including any security therefor; (d) consent to the assignment by Tenant of its interest in the Agreement; or (e)

consent to any other matter or thing under or relating to the Agreement. Guarantor waives trial by jury in any action, proceeding or counterclaim, involving any matters whatsoever arising out of or in any way connected with the Guaranty. Guarantor agrees to reimburse Landlord for the costs and attorney's fees incurred by reason of Landlord having to enforce this Guaranty.

9. Guarantor represents and warrants to Landlord that (a) the Agreement has been duly authorized, executed and delivered by Tenant and is a legal, valid and binding instrument enforceable against Tenant in accordance with its terms, and (b) this Guaranty has been duly authorized, executed and delivered by Guarantor and is a legal, valid and binding instrument enforceable against Guarantor in accordance with its terms.

10. The Guarantor may not assign its rights nor delegate its obligations under this Guaranty, in whole or in part, without prior written consent of the Landlord, and any purported assignment or delegation absent such consent is void. This Guaranty shall remain in full force and effect, notwithstanding (a) any assignment or transfer by Tenant of its interest in the Agreement (in which case this Guaranty shall apply, from and after such assignment or transfer, to all of the obligations, liabilities and covenants of the assignee or transferee under the Agreement), or (b) any assignment or transfer by Landlord of its interest in the Agreement (in which case Guarantor's obligations under this Guaranty shall inure to the benefit of Landlord's assignee or transferee), in each case irrespective of whether Guarantor has notice of or consents to any such assignment or transfer.

11. THIS GUARANTY SHALL BE GOVERNED BY AND CONSTRUED IN ACCORDANCE WITH THE INTERNAL LAWS OF THE STATE OF WYOMING WITHOUT GIVING EFFECT TO PRINCIPLES OF CONFLICTS OF LAW. GUARANTOR AND LANDLORD JOINTLY AND SEVERALLY AGREE TO THE EXCLUSIVE JURISDICTION OF COURTS LOCATED IN THE STATE OF WYOMING, UNITED STATES OF AMERICA, OVER ANY DISPUTES ARISING OR RELATING TO THIS GUARANTY.

IN WITNESS WHEREOF, this Guaranty has been executed and delivered as of the date and year first above written:

Signed, sealed and delivered

in the presence of:

Name: [Signature]
Address: 1326 N. 1st Ave
PO Box 1000
SS#: 010-123-1230

Name: [Signature]
Address: 1326 N. 1st Ave
PO Box 1000
SS#: 010-123-1230

Guarantor acknowledges its address and will notify Landlord of any changes thereto.

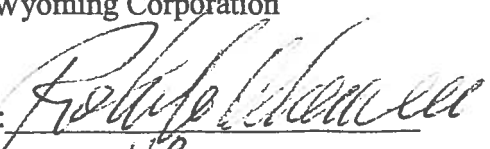
Exhibit F

Permission to Sell Alcoholic or Malt Beverages on the Premises

Incorporated into this Lease is the provision granted by the Lessor to the Lessee for the Lessee to obtain a liquor license for the dispensing of alcoholic or malt beverages in the subject property described as 4620 Grandview Ave, Units 205, 206 & 207, Cheyenne, WY 82009, in accordance with W.S. 12-4-103(a)(iii). Said permission is granted from the Lessor to the Lessee for the duration of this lease and any extensions, if exercised.

LANDLORD:

RGLM, Inc.
A Wyoming Corporation

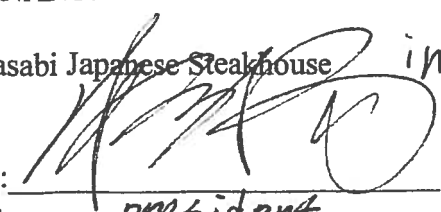
By: 
Its: VP

TENANT:

Wasabi Japanese Steakhouse

inc

RM
MYZ

By: 
Its: president